NIT No: 42/SE(Elec.)/TTD/2026-27

Tirumala Tirupati Devasthanams :: Tirupati

ENGINEERING DEPARTMENT

e-Tendering
STANDARD BID DOCUMENT

I N D E X

No	*Details*	*Page No.*
1.	***Notice Inviting Tender (NIT)***	
2.	***Instructions to Tenderers.***	
	A) General.	
	B) Tender Document	
	C) Preparation of Tenders	
	D) Submission of Tenders	
	E) Tender Opening and Evaluation.	
	F) Award of Contract.	
	ANNEXURE-A	
3.	*Annexure-I → Checklist to Accompany the Tender-*	
	Annexure-II Declaration	
4.	***Conditions of Contract.***	
	TENDER	
	A) General	
	B) Time for completion.	
	C) Quality Control	
	D) Cost Control	
	E) Finishing the Contract	
	F) Special conditions.	
5.	***Technicl Specifications***	
6.	***DRAWINGS***	
7.	***BILL OF QUANTITIES -Preamble***	
8.	***BILL OF QUANTITIES***	
	Part-I Schedule -A	
	Part-II – Reimbursable Provisions	

TIRUMALA TIRUPATI DEVASTHANAMS

ENGINEERING DEPARTMENT

*** *** ***

NOTICE INVITING TENDERS (NIT)

1.	*DEPARTMENT NAME*	:	***TIRUMALA TIRUPATI DEVASTHANAMS – Engineering***
2.	*CIRCLE*	:	***SE(Elec.), TTD, TIRUPATI***
3.	*NIT NUMBER*	:	***42/SE(Elec.)/TTD/2026-27***
4.	*NAME OF WORK*	:	Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala.
5.	*ESTIMATE CONTRACT VALUE*	:	***₹54,85,139.26***
6.	*PERIOD OF COMPLETION*	:	**6 Months with 24 months defect Liability period**
7.	*FORM OF CONTRACT & CLASS OF CONTRACT*	:	Class-I (Electrical)
8.	*BIDDING TYPE*	:	*Open*
9.	*BID CALL NO.*	:	***1st call***
10.	*TYPE OF QUOTATION*	:	*PERCENTAGE*
11.	*TRANSACTION FEE PAYABLE ONLINE TO APTS, PAYABLE (INR) payable at **Vijaywada (Online)***	:	***As generated online***
12.	*PROCESSING FEE*	:	**--**
13.	*PROCESSING FEE DD PAYABLE TO*	:	--
14.	*EMD/BID SECURITY* ***(Drawn not before 14.10.2026*** *(Name of Account holder: EO, TTD - EMD, TTD EMD* **Account No.630901062005, ICICI BANK, IFSC code: ICIC0006309** *The EMD online payment is to be made through e-procurement portal only. The EMD Account details furnished is for obtaining Bank Guarantee only. The EMD paid through NEFT / RTGS mode or through Demand Draft will be summarily rejected.)*	:	***₹ 55,000/-***
15.	*EMD/BID SECURITY* ***BG(valid for six months) / Online payment / e-challan*** *PAYABLE TO*	:	*E.O., TTD, Tirupati.*
16.	*BID DOCUMENT DOWNLOADING START DATE*	:	***23.10.2026 from 5.00 p.m***

17.	*BID DOCUMENT DOWNLOADING END DATE*	*:*	***07.11.2026 upto 1.00 p.m***
18.	*LAST DATE AND TIME FOR RECEIPT OF BIDS*	*:*	***07.11.2026 upto 3.00 p.m***
19.	*BID VALIDITY*	*:*	*3 months*
20.	*PRE QUALIFICATION/TECHNICAL BID OPENING DATE*	*:*	***07.11.2026 at 3.15 pm***
21.	*COMMERCIAL BID OPENING DATE*	*:*	***09.11.2026@ 4.00 p.m***
22.	*OFFICER INVITING BIDS*	*:*	*The Chief Engineer, TTD, Tirupati*
23.	*BID OPENING AUTHORITY*		*The Superintending Engineer (Elec.), TTD, Tirupati*
24	*ADDRESS*		*O/o The Superintending Engineer(Elec.), Ground floor, Room No.132, T.T.D. Admn. Building, K.T.Road, Tirupati, Chittoor (Dist.) Andhra Pradesh, India.*
25	*CONTACT DETAILS*		***9441774308***

Procedure for bid submission:

1. Bids shall be submitted online on https://www.tender.apeprocurement.gov.in

2. *The bidders who are desirous of participating in e-procurement shall submit their bids as per the standard formats available at the e-market place.*

3. *All bidders must fill in the pre-qualification checklist in the templates provided and sign on the self-declaration form stating their compliance with all the technical and financial pre - qualification criteria and up load the same.*

4. *E.M.D.* ***₹55,000/-drawn on / or after 14.10.2026*** *(EMD shall be Mandatorily paid in the shape of BG/ Online payment/Challan made in favour of the Executive Officer, TTD, Tirupati and payable at Tirupati. (Name of Account holder: EO, TTD - EMD, TTD EMD* **Account No.630901062005, ICICI BANK, IFSC code: ICIC0006309**. *(Online payments to any other accounts & EMD paid through Demand draft will be summarily rejected).*

The EMD online payment is to be made through e-procurement portal only.

The EMD Account details furnished is for obtaining Bank Guarantee only.

The EMD paid through NEFT / RTGS mode or through Demand Draft will be summarily rejected.

5. *The bidders should scan and upload copies of Registration document and BG / Online payment / Challan receipt towards EMD & on line receipt for Transaction fee. The bidders shall sign on all the documents, uploaded by him, owning responsibility for their correctness/ authenticity.*

6. *All bidders must upload all supporting documents in the e- Procurement portal validating their declarations and uploaded in the templates provided for the same under the technical and commercial pre-qualification criteria laid down in the check list.*

7. *The TTD will not hold any risk and responsibility due to non-visibility of the scanned and uploaded documents.*

   - The Department shall carry out the technical bid evaluation solely based on the uploaded certificates / documents, BG / Online payment / Challan towards EMD in the e-Procurement system and open the price bid of the responsive bidders.

   - The department will notify the successful bidder for submission of original hard copies of all uploaded documents, BG / Online payment / Challan towards EMD prior to entering into Agreement.

8. *The successful bidder shall invariably furnish the original BG / Online payment / Challan towards EMD, certificates / documents of the uploaded scanned copies to the Tender inviting Authority before entering into agreement either personally or through courier or post and the receipt of the same with in the stipulated date shall be the responsibility of the successful bidder. The Department will not take any responsibility for any delay in receipt / non receipt of original BG / Online payment / Challan towards EMD, certificates / documents from the successful bidder before the stipulated time. On receipt of documents, the Department shall ensure the genuinely of the BG / Online payment / Challan towards EMD and all other certificates/ documents uploaded by the bidder in e-procurement system in support of the qualification criteria before concluding the agreement.*

9. *After uploading the documents the attested copies (to be attested by a Gazetted Officer) of the uploaded documents, original BG / Online payment / Challan receipt towards EMD and on-line transaction receipt (except the Price bid / offer) are to be submitted by the successful bidder to the Tender Inviting Authority, so as to reach before entering in to agreement. Failure to furnish any one of the original hard copies of uploaded documents, before entering in to agreement by the successful bidder will be suspended from participating in tenders on e-procurement platform for period of three years. The TTD shall not hold any risk on account of postal delay. Similarly, if any of the certificates, documents, etc., furnished by the tenderer are found to be false / fabricated / bogus, the successful bidder will be suspended from participating in tenders on e-procurement plat form for a period of three years.*

10. *If the lowest bidder backs out at the time of agreement, penalty of forfeiture of EMD will be imposed and business of the agency will be suspended for one year with all the Departments in A.P in respect of conventional tenders also vide G.O.Ms.No. 259 of T, R&B (R.V) dept., dt. 6.9.2008.*

11. *The tenderers shall furnish a declaration in online stating that the soft copies uploaded by them are genuine. Any incorrectness/deviation noticed will be viewed seriously and apart from cancelling the work duly forfeiting the EMD, criminal action will be initiated including suspension of business.*

12. *The bidder shall sign on all the documents uploaded by him including EMD along with the self-declaration for fulfilling pre - qualification criteria set by the Department (on the check list) owning responsibility for their correctness / authenticity and upload along with Tender.*

13. *The price bids will be opened on the date and time fixed.*

14. *Single bidder received in first call is liable for cancellation*

General Terms & Conditions

1. ***Transaction fee:*** *All the participating bidders shall pay a transaction fee (non-refundable) on - line (non-refundable) (Generated Online) in favour M/s APTS, Vijayawada.*

2. ***E.M.D.*** ₹*55,000/-* to be paid in the shape of BG (valid for six months) /online mode payment/ e-challan (drawn not before **14.10.2026**) drawn in favour of E.O., TTD, Tirupati. (accepted only scanned BG/Online payment/e-challan)

   Name of Account holder: EO, TTD - EMD, TTD EMD **Account No.630901062005, ICICI BANK, IFSC code: ICIC0006309**
   The EMD online payment is to be made through e-procurement portal only.
   The EMD Account details furnished is for obtaining Bank Guarantee only.
   The EMD paid through NEFT / RTGS mode or through Demand Draft will be summarily rejected.

3. *The successful bidder has to pay the balance EMD @ 1.5 % of ECV/TCV at the time of conclusion of the Agreement in the shape of crossed* ***DD / BG (Valid for contract period + Defect liability period of 24 months + 28 Days)*** *in favour of E.O., TTD, Tirupati.*

4. *If, the tenderer submits 1% EMD in the form of BG at the time of tender and successful, the total EMD of $2^{1}/_{2}$ % is to be paid in the form of DD /BG* ***(Valid for contract period + Defect liability period of 24 months + 28 days).***

5. *Class of contractor Eligible:* **Class-I (Electrical)** *TTD Registered Contractors/Government Department of State / Central / Other State Contractor who are eligible to quote for this value of work and have registered in category mentioned as per G.O. Ms. No. 521, dated: 10-12-1984 or Eligible contractors as per GO. Ms No. 132, T R&B (R.I) Department, dated: 11-08-1998, GO. Ms. No: 178 I&CAD, dated: 27-09-1997, GO. Ms. No: 8 (R&B), dated: 08-01-2003, GO. Ms. No: 94 I&CAD, dated: 01-07-2003. The successful tenderer should register in T.T.D. before entering into agreement if he is not already registered with T.T.D). The eligible intending bidders would be required to enroll themselves on the e-procurement market place www.apeprocurement.gov.in and submit their bids online only.*

6. *Any other condition regarding receipt of tenders in conventional method appearing in the tender documents may please be treated as not applicable.*

7. The *successful* bidder shall **pay 0.04%** of estimate contract value towards e-procurement corpus fund **through Online payment which is enabled on e-procurement platform in the name of accepted bidder** at the time of conclusion of agreement

8. *"The bidder shall authenticate the bid with his digital certificate for submitting the bid electronically on e-procurement platform and the bids not authenticated by digital certificate of the bidder will not be accepted on the e-procurement platform." (G.O.Ms.No.6, dated 28/02/2005 of IT & C Dept., Govt. of AP).*

9. *As per the G.O.Ms 174, I&CAD (PW-Reforms) Department dated 01-09-2008 , that the successful bidder found defaulting in submission of hard copies of uploaded certificates / documents, original DD / BG towards EMD within the stipulated time i.e. before concluding the agreement or if any variation is noticed between the uploaded documents and the hard*

copies submitted by the successful bidder, the successful bidder will be suspended from participating in tenders on e-Procurement platform for a period of three years.

10. *Tenders with an excess of above 5% of the estimated contract value shall not be allowed to quote in online and the tender percentage to be quoted should be inclusive of all taxes.*

11. *The bidders shall pay the EMD by* ***BG (valid for six months) / Online payment receipt/e-challan*** *drawn in favour of E.O, TTD, Tirupati. This EMD by* ***BG (valid for six months) / Online payment receipt/e-challan*** *shall be uploaded in the place provided for B.G.*

Name of Account holder: EO, TTD - EMD, TTD EMD **Account No.630901062005, ICICI BANK, IFSC code: ICIC0006309**

The EMD online payment is to be made through e-procurement portal only.

The EMD Account details furnished is for obtaining Bank Guarantee only.

The EMD paid through NEFT / RTGS mode or through Demand Draft will be summarily rejected.

INSTRUCTIONS TO TENDERERS

A – GENERAL

Name of work : **"**Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala."

Scope of work:

a) Give brief description and location of work :

b) List out Principal Components of the work :

ECV put to tender. ***: ₹54,85,139.26***

Period of completion : ***SIX (06) Months***

c) Lowest quotation rates.

Details of provisions included in the ECV put to Tender.

i) Contractor's Profit & overhead charges --

ii) Other allowances: Hill allowance --

d) Reimbursable Provisions.

i) GST - *As specified in clause 100 of General conditions.*

1.1 *The Superintending Engineer(Elec.) / Chief Engineer, TTD, Tirupati, invites tenders for the above work vide* ***Adv.No.42/D3/CE/TTD/2026-27,*** *dated* ***14.10.2026***

Online bids for the above work will be received from the **Class-I (Electrical)** *TTD Registered Contractors/Government Department of State / Central / Other State Contractor. The eligible Contractors / Firms shall submit bids online on www.eprocurement.gov.in before the date and time stipulated in Notice Inviting Tender [NIT].*

The online bids will be opened by the Superintending Engineer (Elec.), TTD or his nominee at his office, on the dates mentioned in NIT. If the Office happens to be closed on the date, the opening of tenders gets automatically postponed to the next working date, the time being unaltered, unless extended by a notification published or through amendment on TTD's web site i.e., tirumala.org

The successful tenderer is expected to complete the work within the time period specified in the NIT.

2. Firms Eligible to Tender:

2.1 The Firms who

i. Possess the valid registration in the class and category mentioned in the NIT and satisfy all the conditions therein.

ii. Are not blacklisted or debarred or suspended by the Government for whatever the reason, prohibiting them not to continue in the contracting business.

iii. Have complied with the eligibility criteria specified in the NIT are the eligible tenderers.

2.2 Firms Ineligible to Tender:

i) A retired officer of the Govt. of AP or Govt. of India executing works is disqualified from tendering for a period of two years from the date of retirement without the prior permission of the Government.

ii) The Tenderer who has employed any retired officer as mentioned above shall be considered as an ineligible tenderer.

iii) The contractor himself or any of his employees is found to be Gazetted Officer who retired from Government Service and had not obtained permission from the Government for accepting the contractor's employment within a period of 2 years from the date of his retirement.

iv) The Contractor or any of his employees is found at any time after award of contract, to be such a person who had not obtained the permission of the Government as aforesaid before submission of the tender or engagement in the Contractor's service.

v) Contractor shall not be eligible to tender for works in the division / circle where any of his near relatives are employed in the rank of Assistant Engineer or Assistant Executive Engineers and above on the Engineering side and Divisional Accounts Officer and above on the administrative side. The Contractor shall intimate the names of persons who are working with him in any capacity or are subsequently employed. He shall also furnish a list of Gazetted /Non-Gazetted, State Government Employees related to him. Failure to furnish such information tenderer is liable to be removed from the list of approved contractors and his contract is liable for cancellation.

Note: Near relatives include

1. *Sons, step sons, daughters, and step daughters.*
2. *Son-in-law and daughter-in-law.*
3. *Brother-in-law and sister-in-law.*
4. *Brothers and Sisters.*
5. *Father and Mother.*
6. *Wife / Husband.*
7. *Father-in-law and Mother-in-law*
8. *Nephews, nieces, uncles and aunties*
9. *Cousins and*
10. *Any person residing with or dependent on the contractor.*

3. Qualification data of the Tenderers

3.1 The tenderer shall furnish the following particulars in the formats enclosed , Supporting by documentary evidence as specified in the formats

a) Check slip to accompany the tender (in Annexure-I).

Attested copies of documents relating to the Registration of the firm, **Class-I(Electrical)** *TTD Registered Contractors/Government Department of State / Central / Other State Contractor, Partnership deed, Articles of Association, Commercial Tax / Registration, Furnishing of Latest Income Tax certificate is dispensed with. However the contractors shall furnish their copy of permanent Account Number (PAN) card and copy of latest income tax returns submitted along with proof.*

*b) Value of all similar works executed every year during the last five financial years (i.e., from **2021-22** to **2025-26**) in Statement - I.*

*c) Details of similar works completed in the name of the tenderer as Prime Contractor during the last five financial years i.e., from **2021-22** to **2025-26** showing year wise break up of value of work executed in Statement - II.*

d) Year-wise specified quantities executed by the tenderer during the last five financial years in Statement-III.

e) Details of the existing commitments i.e., works on hand and works for which tenders are submitted in Statement - IV.

f) Availability of key personnel for administration / site management and execution viz., technical personnel required for the work (Statement - V)

g) Information regarding any litigation, with Government during the last five years, in which the Tenderer is involved in (Statement - VI)

h) Availability of working capital for the work [Liquid assets, credit facility and availability of other financial resources such as solvency etc.]

i) The proposed methodology and program of construction, backed with equipment planning and deployment, duly supported with broad calculations, justifying their capability of execution and completion of the work as per technical specifications within the stipulated period of completion as per milestones.

j) The particulars of quality control testing Lab owned, OR tie up with established quality control testing laboratories.

3.2 Tenders from Joint Ventures are not acceptable unless specifically stated otherwise.

***Note:** The Partnership firms, which are registered as Contractors shall intimate the change in partnership deed, if any, as per GO Ms No.58, I & CAD, dt.23.4.2002 within one month of such change. Failure to notify the change to the registration authority in time will entail the firms to forfeit their registration and their tender will be rejected. The intimation of change of partners if any and the acceptance by the Registration authority may be enclosed.*

*3.3 **QUALIFICATION CRITERIA FOR OPENING OF THE PRICE BID**.*

***a)** To qualify for opening the Price Bid each contractor / firm in its name, should have, during the last five financial years from **2021-22** to **2025-26** (specify the financial years those immediately preceding the financial year in which the tenders are invited).*
*Satisfactorily completed as a PRIME CONTRACTOR, similar works of value not less than **₹ 54,85,139.26** [at current price level] in any one year.*

***Note:-** The cost of completed works of previous years shall be given weightage of 10% per year to bring them to current price level, (the financial year in which bids are invited).*

b)** Each Bidder should have executed the following minimum quantities **in any one year** of the **last five years** period from **2021-22** to **2025-26.

Sl No	Description of work	Quantity
1	*Supply & transportation of 3 ½ core UG cable*	*400 m*

c) Availability of the Key personnel

- ***i.*** *Graduate Engineer (Electrical) - **1 No.***
- ***ii.*** *Diploma Holder (Electrical) -**1 No.***

d) *Liquid assets and / or credit facilities of not less than* ***₹27,42,569.63*** *edit facility / letter of credits / Solvency certificates from Banks etc). The solvency certificate should not older than one year from the date of bid submission and should have the validity sufficiently beyond the date of tender.*

e) *The tenderer shall submit the copies of documents of* ***(i)*** **Class-I (Electrical)** *TTD Registered Contractors/Government Department of State / Central / Other State Contractor required as per NIT* ***(ii)*** *Registration copy GST Act 2017 i.e Taxpayer Identification Number* ***(iii)*** *PAN Card and copy of latest I.T returns submitted along with proof* ***(iv)*** *Necessary B.G/Online payment/Challan towards E.M.D.* ***(v)*** *Transaction fee at 0.03% of ECV+applicable taxes through the electronic payment Gateway as generated on e-procurement platform.*

f) *The price-bids of such tenderers, who are determined to have complied with the eligibility criteria, will only be opened.*

g) *If the office happens to be closed on the dates specified above, the respective activity will be performed at the designated time on the next working day without any notification.*

h) *The Bidder shall authenticate the bid with his digital certificate for submitting the bid electronically on e-Procurement Platform and the bids not authenticated by Digital certificate of the bidder will not be accepted on the e-Procurement platform*

Bid capacity.

Assured available Bid capacity as per formula (2AN-B) shall be greater than Internal Bench Mark value / ECV assessed by employer

The tenderer who meets the above qualification criteria and whose available bid capacity is more than the estimated contract value will be qualified for opening of Price bid. The available bid capacity will be calculated as under:

Available Bid Capacity: ***2AN-B ≥ ₹ 54,85,139.26***

Where,

A= Maximum value of similar works executed in its name in any one financial year during the last five financial years (updated to current Price level) taking into account the works completed as well as works in progress.

N= Number of years prescribed for completion of the work for which Tenders are invited [months / 12].

*B= Updated value (at current Price level), of all existing Commitments i.e., ongoing works, works likely to be awarded to be executed during the next / **2026-2027** years. (Period of completion for which Tenders are invited).*

Annual turnover cost of completed works and balance works on hand etc., shall be updated by giving weightage of 10% per year to bring them to current price level. If the certificate is from charted accountant, it should clearly specify that the turnover is from similar works from Govt/Semi Govt/PSUS/Quasi Govt/TTD. Then only CA s certificate will be considered. If necessary, TTD can ask for Bank Scrolls of contractor.

Experience relating to the works executed in State / Central Government Departments or State / Central Government under takings in India / Semi Govt /PSUS/Quasi Govt /TTD shall only be considered.

No relaxation will be given to any of the qualification criteria.

Note: a) *Sub-contractor's experience, in his name will be taken in to account in determining the Tenderer's compliance to the Qualification criteria, if it is as per GO Ms No.8, dt. 8.1.2003.*

b) *The experience gained in a registered JV firm to the extent of the Tenderers share shall be considered if the tenderer happens to be the lead partner, for similar works criteria also.*

3.4 *Even though the tenderers meet the above qualifying criteria, they are liable to be disqualified / debarred / suspended / blacklisted if they have*

- *Furnished false / fabricated particulars in the forms, statements and / annexures submitted in proof of the qualification requirements and/or*
- *Not turned up for entering into agreement, when called upon.*
- *record of poor progress such as abandoning the work, not properly completing the contract, inordinate delays in completion, litigation history or financial failures etc. and/or*
- *participated in the previous bidding for the same work and had quoted unreasonably high tender percentage and*
- *even while execution of the work, if found that the work was awarded to the Contractor based on false / fake certificates of experience, the Contractor will be blacklisted and work will be taken over invoking clause 61 of PS to APSS.*

3.5 ***Tenders with an excess of above 5% of the estimated contract value shall summarily be rejected as per G.O.Rt.No.230, T.R&B (R.I) Dept., Dt.13.08.2007.***

3.6 *For tenders up to 25% less than the estimated contract value of work, no additional security deposit is required. But for tenders less by more than 25% of the estimated Contract Value of work, the difference between the tendered amount and 75% of the estimated contract value, shall be paid by the successful tenderer at the time of concluding agreement as an additional security to fulfill the contract through a* ***Bank Guarantee (or) Demand Draft*** *on a Nationalized Bank / Scheduled bank in the prescribed format valid till completion of the work in all respects*

3.7 *a) If the percentage quoted by a tenderer is found to be either abnormally high or with in the permissible ceiling limits prescribed but under collusion or due to unethical practices adopted at the time of tendering process, such tenders shall be rejected.*

b) A tenderer submitting a Tender which the tender accepting authority considers excessive and or indicative of insufficient knowledge of current prices or definite attempt of profiteering will render himself liable to be debarred permanently from tendering or for such period as the tender accepting authority may decide. The tenderer overall percentage should be based on the controlled prices for the materials, if any, fixed by the Government or the reasonable prices permissible for the tenderer to charge a private purchaser under the provisions of clause-6 of the hoarding and profiteering prevention ordinance of 1943 as amended from time to time and on similar principle in regard to labour supervision on the construction.

4 ***One Tender per Tenderer:***

Each Tenderer shall submit only one Tender for the work. A Tenderer who submits more than one Tender will cause dis-qualification of all the Tenders submitted by the Tenderer.

5. ***Cost of Tendering***

The Tenderer shall bear all costs associated with the preparation and submission of his Tender and the tender inviting authority will in no case be responsible and liable for those costs.

6. ***Site Visit.***

The Tenderer, at the Tenderer's own responsibility and risk is advised to visit and examine the Site of Work and its surroundings and obtain all information that may be necessary for preparing the

Tender for entering into a contract, for construction of the work. The costs of visiting the site shall be at the Tenderer's own expense.

B. TENDER DOCUMENT

7. *Contents of Tender document.*

One set of Tender document, comprises of the following:

Technical bid

1) *Notice Inviting Tenders (NIT)*
2) *Instruction to Tenderers*
3) *Forms of tender and Qualification information*
4) *Tender*
5) *Conditions of Contract.*
6) *Technical Specifications*
7) *Drawings.*
8) *Forms of Securities i.e., EMD, Additional Security etc.,*

Price bid

Bill of Quantities and Price bid. Schedule-A
Bill of Quantities Part-II (Reimbursable provisions)

8. *Clarification on Tender Documents*

A prospective Tenderer requiring any clarification on Tender documents may contact the Tender Inviting Officer at the address indicated in the NIT. The Tender Inviting Officer will also respond to any request for clarification, received through post.

9. *Amendment to Tender Documents*

9.1 *Before the last date for submission of tenders, the tender inviting officer may modify the contents of the Tender Notice, Tender documents by issuing amendment / addendum.*

9.2 *Any addendum/amendments issued by the Tender Inviting Officer shall be part of the Tender Document and it shall either be communicated in writing to all the purchasers of the Tender documents or notified in the News Papers/ e-Procurement site in which NIT was published.*

9.3 *To give prospective Tenderers reasonable time to take an addendum into account in preparing their bids, the Tender Inviting Officer may extend if necessary, the last date for submission of tenders.*

C. PREPARATION OF TENDERS.

10. *Language of the Tender.*

All documents relating to the tender shall be in the English Language only.

11. *Documents comprising of the tender.*

11.1 *The bidders who are desirous of participating in e-procurement shall submit their technical bids, price bids etc., through online in the standard proscribed in the tender documents, displayed at e market place. The bidders should upload the scanned copies of all the relevant certificates, documents etc., in the e market place in support of their technical bids. The bidders shall sign on all the statements, documents, certificates, uploaded by him, owning responsibility for their correctness/authenticity.*

11.2 *As per the G.O. Ms. No. 174, Irrigation & CAD (PW-Reforms) Department, Dated: 01-09-2008, Submission of original Hard Copies of the uploaded scan copies of DD/BG towards EMD by participating bidders to the tender Inviting authority before opening of the price bid is dispensed forthwith. All the bidders shall invariably upload the scanned copies of DD/BG in e- Procurement system and this will be the primary requirement to consider the bid as responsive. The Department shall carry out the technical bid evaluation solely based on the uploaded certificates/documents, DD/BG towards EMD in the e-procurement system and open the price bids of the responsive bidders. The Department*

will notify the successful bidder for submission of original hard copies of all uploaded documents, DD/BG towards EMD prior to entering into agreement.

11.3 *The successful bidder shall invariably furnish the original BG towards EMD, certificates/documents of the uploaded scanned copies to the Tender Inviting Authority before entering into agreement either personally or through courier or post and the receipt of the same with in the stipulated date shall be the responsibility of the successful bidder.*

The Department will not take any responsibility for any delay in receipt/non-receipt of original BG towards EMD, certificates/documents, from the successful bidder before the stipulated time. On receipt of documents, the Department shall ensure the genuinity of the BG towards EMD and all other certificates / documents uploaded by the bidder in e-Procurement system in support of the qualification criteria before concluding the agreement.

11.4 *If any successful bidder fails to submit the original Hard Copies of uploaded certificates/Documents, BG towards EMD with in the stipulated time or if any variation is noticed between the uploaded documents and the hard copies submitted by the bidder, the successful bidder will be suspended from participating in the tenders on e-Procurement platform for a period of 3 years. The e-Procurement system would deactivate the user ID of such defaulting successful bidder based on the trigger/recommendation by the Tender Inviting Authority in the system. Besides this, the Department shall invoke all processes of law including criminal prosecution of such defaulting bidder as an act of extreme deterrence to avoid delays in the tender process for execution of the development schemes taken up by the Government. The information to this extent may be displayed in the e-procurement platform website.*

11.5 *The bidder shall mandatorily pay the transaction fee to APTS through the electronic payment Gateway.*

11.6 *The tenderers shall furnish a declaration in online stating that the soft copies uploaded by them are genuine. Any incorrectness/deviation noticed will be viewed seriously and apart from canceling the work duly forfeiting the EMD, criminal action will be initiated including suspension of business.*

11.7 *The Bidder shall authenticate the bid with his digital certificate for submitting the bid electronically on e-procurement Platform and the bids not authenticated by Digital certificate of the bidder will not be accepted on the e-procurement platform.*

11.8 *The technical bids will be opened on line by the concerned Superintending Engineer at the time and date as specified in the tender documents. All the statements, documents, certificates, DD/BG etc., uploaded by the tenderers will be down loaded for technical evaluation. The clarifications, particulars if any required from the bidders will be obtained or in the conventional method by addressing the bidders. The technical bids will be evaluated against the specified parameters/ criteria, same as in the case of conventional tenders and the technically qualified bidders will be identified. The result of technical bid evaluation will be displayed on the e market place, which can be seen by all the bidders who participated in the tenders.*

12. *Bid Offer:*

12.1 *Bill of Quantities called Schedule "A" and the bid offer accompanies the tender document as Volume - II. It shall be explicitly understood that the Tender Inviting Officer does not accept any responsibility for the correctness or completeness of this schedule 'A' and this schedule 'A' is*

liable to alterations by omissions, deductions or additions at the discretion of the Superintending Engineer or as set forth in the conditions of the contract. The Schedule "A" shall contain the items of work. The percentage quoted by the contractor shall be applicable only to Schedule "A" items. The tenderers will have to state clearly their willingness to execute the work at certain specific percentage of excess or less or at par of the ECV indicated in the space provided therein in Schedule 'A'. The tenderer should however quote his lump sum tender based on this schedule of quantities. He should quote his offer as an overall tender percentage. The overall tender percentage should be written both in Words and in Figures.

12.2 *The Schedule –A (or Price-bid) contains not only the quantities but also the rates worked out by the Department and the amount for each item and total value of the estimated contract. The tenderer should workout his own rates keeping in view the work, site conditions and quote his overall tender percentage with which he intends to execute the work.*

12.3 *The bid offer shall be for the whole work and not for individual items / part of the work.*

12.4 *All duties, taxes, and other levies payable by the contractor as per State / Central Government rules, shall be included in the tender percentage quoted by the tenderer, however keeping in view the maximum reimbursable amounts specified in 100.1 to 101.17.*

12.5 *The tendered contract amount as computed based on overall tender percentage is subject to variation during the performance of the Contract in accordance with variation in quantities etc.*

12.6 *Charges Payable to APTS*

The successful bidder will pay further fee @ 0.04% of ECV (Estimated contract value) payable to APTS.

Once the L1 bidder is finalized, the system automatically generates the e-Procurement fund (corpus fund) to be paid.
The option for payment of eProcurement fund (Corpus fund) is enabled to bidders/contractors in their login.

(The ceiling amount of Transaction fee for works costing ECV up to ₹. 50.00 crores is ₹ 10,000/- and for works costing with ECV above ₹50.00 Crores the ceiling amount of transaction fee is ₹ 25,000/-) to create e procurement corpus fund to be administered by APTS. The above fee is payable by the successful bidder through online payment in favour of M/S APTS , Vijayawada at the time of conclusion for the agreement.

13. *Validity of Tenders:*

13.1 *Tenders shall remain valid for a period of not less than **three months** from the last date for receipt of Tender specified in NIT.*

13.2 *During the above mentioned period no plea by the tenderer for any sort of modification of the tender based upon or arising out of any alleged misunderstanding of misconceptions or mistake or for any reason will be entertained.*

13.3 *In exceptional circumstances, prior to expiry of the original time limit, the Tender Inviting Officer may request the bidders to extend the period of validity for a specified additional period. Such request to the Tenderers shall be made in writing. A Tenderer may refuse the request without forfeiting his E.M.D. A Tenderer agreeing to the request will not be permitted to modify his Tender, but will be required to extend the validity of his E.M.D. for a period of the extension.*

14. *Earnest Money Deposit*

14.1 *The Tenderer shall furnish, Earnest Money Deposit equivalent to 1% of ECV at the time of tender. The **BG / Online Payment/e-challan** shall be from a Scheduled Commercial Bank valid for a period of 6 months (six months in case of BG) photo copy of the **BG / Online payment receipt/e-challan** is to be scanned and uploaded along with the Bid and as per the G.O.Ms 174, I&CAD (PW-Reforms) Department dated 01-09-2008, that the successful bidder found defaulting in submission of hard copies of uploaded certificates / documents, original BG towards EMD with in the stipulated time i.e. before concluding the agreement or if any variation is noticed between the uploaded documents and the hard copies submitted by the successful bidder, the successful*

bidder will be suspended from participating in tenders on e-Procurement platform for a period of three years.

14.2 *The balance EMD @ 1½% of ECV / TCV whichever is higher shall be paid at the time of concluding Agreement by the successful Tenderer. This EMD can be in the form of*

a) a bank demand draft on any Scheduled Commercial Bank

b) a bank guarantee in the form given in Section 8, from a Nationalized Bank/Scheduled Commercial Bank.

14.3 *The 1% E.M.D. paid by the successful Tenderer at the time of submission of hard copies of Tender documents through **BG** will be discharged if the Tenderer furnishes Bank Guarantee for the full EMD of 2½% at the time of concluding agreement.*

14.4 *The earnest money deposited by the successful tenderer will not carry any interest and it will be dealt with as provided in the conditions stipulated in the tender. The E.M.D. given in the form of Bank Guarantee on any Scheduled Commercial Bank shall be valid for the duration of contract period plus defect liability period of **twenty four months plus 28 days** and in case any valid extension of contract period is granted, the validity of BG shall also be extended for the corresponding period. The Bank Guarantee furnished by the tenderer towards additional security amount shall be valid till the work is completed in all respects.*

14.5 *The E.M.D. shall be forfeited.*

(a) In the case of a successful tenderer, if he fails to sign the Agreement for whatever the reason.

(b) In consideration of the Executive Engineer / Superintending Engineer /Chief Engineer, T.T.Devasthanams undertaking to investigate and to take into account each tender and in consideration of the work thereby involved, all earnest monies deposited by the tenderer will be forfeited to the T.T.Devasthanams in the event of such tenderer either modifying or with-drawing his tender at his instance within the said validity period of three months.

14 Signing of Tenders.

14.1 If an individual makes the tender, it shall be signed with his full name and his address shall be given. If it is made by a firm, it shall be signed with the co-partnership name by a member of the firm, who shall also sign his own name, and the name and address of each member of the firm shall be given, if the tender is made by a corporation it shall be signed by a duly authorised officer who shall produce with his tender satisfactory evidence of his authorization. Such tendering corporation may be required before the contract is executed, to furnish evidence of its corporate existence. Tenders signed on behalf of G.P.A. holder will be rejected.

14.2 The Tender shall contain no alterations or additions, except those to comply with instructions issued by the Tender Inviting Officer, or as necessary to correct errors made by the Tenderer, in which case all such corrections shall be initialed by the person signing the Tender.

14.3 No alteration which is made by the tenderer in the contract form, the conditions of the contract, the drawings, specifications or statements / formats or quantities accompanying the same will be recognized; and, if any such alterations are made the tender will be void.

D. SUBMISSION OF TENDERS.

15 Submission of Tenders:

15.1 The tenderer shall invariably ensure that the scanned copies of the following documents are uploaded and attached online towards qualification criteria furnished by them:

a) All the items as listed in Check list
b) Copy of Class-I (Electrical) *TTD Registered Contractors/Government Department of State / Central / Other State Contractor.*
c) Copy of Permanent Account Number (PAN) Card and copy of latest Income Tax returns submitted along with proof of receipt.
d) Copy of GST Registration certificate.
e) The particulars of value of similar works executed in the last five financial years in the tenderers name in Statement-I along with work done certificates in support of the figures.
f) The details of similar works executed as Prime Contractor (in the same name) during the last five financial years, showing year wise break up of value of work executed in Statement-II duly supported with work done certificates, work wise.
g) The physical quantities of specified works executed as Prime Contractor (in the same name) in the last five financial years with year wise and work wise break up in Statement-III duly supported with work done certificates.
h) The information on 'existing commitments' with supporting certificates in Statement-IV.
i) The availability of Key / critical construction / quality control equipment in Statement-V.
j) The availability of Key personnel in Statement-VI.
k) The information and litigation history in Statement-VII.
l) Proof of Liquid assets in the shape of Solvency certificate for the required amount

NOTE: *The bidders shall sign on all the statements, documents, certificates, uploaded by him, owning responsibility for their correctness/ authenticity.*

15.2 The bidders who are desirous of participating in e-procurement shall submit their technical bids, price bids etc., through online in the standard proscribed in the tender documents, displayed at e market place. The bidders should upload the scanned copies of all the relevant certificates, documents etc., in the e market place in support of their technical bids. The bidders shall sign on all the statements, documents, certificates, uploaded by him, owning responsibility for their correctness/authenticity.

15.3 Furnishing of hard copies by the tenderers before opening of the Price bids is dispensed with. Bids submitted in offline sealed cover system shall not be considered for evaluation.

15.4 The technical bid evaluation of the tenderers will be done on the certificates / documents uploaded through online only towards qualification criteria furnished by them.

15.5 The bidder shall mandatorily pay the transaction fee to APTS through the electronic payment Gateway.

15.6 The successful tenderer shall furnish the original hard copies of all the documents / certificates / statements uploaded by him before concluding agreement.

15.7 If any tenderer fails to submit the original BG / Online payment receipt for EMD, hard copies of uploaded documents within the stipulated time, the tenderer will be suspended /disqualified from participating in the tenders on e-procurement platform for a period of 36 months from the date of bid submission. The suspension of tenderer shall be automatically enforced by the e-procurement system.

15.8 The tenderers shall furnish a declaration in online stating that the soft copies uploaded by them are genuine. Any incorrectness/deviation noticed will be viewed seriously and apart from canceling the work duly forfeiting the EMD, criminal action will be initiated including suspension of business.

Note: *Experience relating to works executed in State/Central Government Departments or State/ Central government undertakings and certificates issued by the*

Executive Engineer or equivalent officer and countersigned by Superintending Engineer or equivalent officer shall only be considered.

16 Important Note:

The Bidder shall authenticate the bid with his digital certificate for submitting the bid electronically on e-procurement Platform and the bids not authenticated by Digital certificate of the bidder will not be accepted on the e-procurement platform.

17 Last date / time for Submission of the Tenders.

17.1 *Tenders must be submitted not later than the date and time specified in NIT. In the event of the specified date/time for the submission of bids declared as holiday, the bids will be received on the next working day.*

17.2 *The Superintending Engineer / Chief Engineer, TTD, may extend the dates for Bid submission / Price bid opening of Tenders by issuing an amendment in which case all rights and obligations of the Superintending Engineer/Chief Engineer will remain same as previously.*

18 Late Tenders:

Any tender received after the last date/time prescribed in NIT will be summarily rejected (in case of off-line tenders)

19 Modification to the Tender.

NO Tenders can be modified after the last date/time of submission of tenders.

E. TENDER OPENING AND EVALUATION

20 Tender opening

20.1 The Technical bid will be opened on the date and time prescribed. The tenderer can view the documents of all participant bidders online once the technical bid is opened. In case of any objection in the technical evaluation of tender / bid. The tenderers who participate in the tender or bid shall raise the objection in writing. The period of technical evaluation i.e. 3 days for minor works (costing more than ₹. 50.00 lakhs and upto ₹. 10.00 crores value bids) and 5 days for major works (costing more than ₹.10.00 crores value bids) and his representation at a later date will not be considered.

20.2 If there is no objection received within the period specified above, the financial bid will be opened by the competent authority. In case of objection received, the tender opening authority shall process the same with his / her remarks to the next higher authority for taking a decision by the competent authority before opening the financial bid and the decision taken by the next higher authority is final and binding on the tenderers.

20.3 *The technical bid containing qualification as per annexure - I & II and statement I to VII will be evaluated by the tender opening authority and the results are recorded which will be signed by the tender opening authority.*

21 Clarification on the Technical Bid.

21.1 *The tender opening authority may call upon any tenderer for clarification on the statements, documentary proof relating to the technical bid. The request for clarification and response thereto shall be in writing and it shall be only on the qualification information furnished by the tenderer. The clarification called for from the tenderers shall be furnished within the stipulated time, which shall not be more than a week.*

21.2 *The tenderer if so desirous, shall agree in writing to furnish the clarification called for within the stipulated time and, for disqualification and rejection of his tender in the event of failure to do so.*

22 Examination of technical Bids and Determination of Responsiveness

22.1 *The Superintending Engineer will evaluate whether each Tenderer is satisfying the eligibility criteria prescribed in the tender document and declares them as a qualified Tenderer.*

22.2 *If the technical bid of a Tenderer is not satisfying any of the eligibility criteria it will be rejected by the Superintending Engineer. However, the tender accepting authority detects any error in the evaluation of Tenders by Superintending Engineer, the tender accepting authority while returning the tenders may direct the Superintending Engineer or Chief Engineer as the case may be, to re-evaluate the tenders.*

22.3 *If any condition is made by the tenderer as addition/alteration to the tender documents, the conditions of the contract, the drawings, specifications or statements / formats or quantities the tender will be rejected.*

23 Price Bid Opening:

23.1 *Only the Price Bids of qualified Tenderers who's technical Bids are found satisfying the eligibility criteria shall be opened.*

23.2 *In case of any ambiguity, the decision taken by the Tender Accepting Authority on tenders shall be final.*

24 Evaluation and Comparison of Price Bids

24.1 *The Superintending Engineer will evaluate and compare the price bids of all the qualified bidders*

24.2 *Negations at any level are strictly prohibited. However, good gesture rebate, if offered by the lowest tenderer prior to finalization of tenders may be accepted by the tender accepting authority.*

24.3 *Selection of tenderer among the lowest and equally quoted tenderers will be in the following orders.*

a. *The tenderer whose bid capacity is higher will be selected*

b. *In case the bid capacity is also same the tenderer whose Annual turnover is more will be preferred.*

c. *Even if the criteria incidentally became the same, the turnover on similar works and their after machinery available for the work and then the clean track regard will be considered for selection.*

25 Process to be Confidential.

25.1 *Information relating to the examination, clarification, evaluation and comparison of Tenders and recommendations for the award of a contract shall not be disclosed to Tenderers or any other persons not officially concerned with such process until the award to the successful Tenderer has been announced by the tender accepting authority. Any effort by a Tenderer to influence the processing of Tenders or award decisions may result in the rejection of his Tender.*

25.2 *No Tenderer shall contact the Superintending Engineer or any authority concerned with finalization of tenders on any matter relating to its Tender from the time of the Tender opening to the time the Contract is awarded. If the Tenderer wishes to bring additional information to the notice of the Superintending Engineer, It should be done so in writing.*

25.3 *Before recommending / accepting the tender, the tender recommending / accepting authority shall verify the correctness of certificates submitted to meet the eligibility criteria and specifically experience. The authenticated agreements of previous works executed by the lowest tenderer shall be called for.*

25.4 *Tenders will be finalized by the Executive Engineers / Superintending Engineers / Chief Engineer / Executive Officer / TTD Board according to the powers vested with them.*

F. AWARD OF CONTRACT

26 Award Criteria

26.1 *The Executive Engineer / Superintending Engineer / Chief Engineer will award or recommend to the Competent tender accepting authority for award of the contract to the Tenderer who is found Technically qualified as per the Tender conditions and whose price bid is lowest.*

26.2 *The tender accepting authority reserves the right to accept or reject any Tender or all tenders and to cancel the Tendering process, at any time prior to the award of Contract, without thereby incurring any liability to the affected Tenderer or Tenderers or any obligation to inform the affected Tenderer or Tenderers of the reasons for such action.*

26.3 *The Tenderer whose Tender has been accepted will be notified of the award of the work by the Superintending Engineer, prior to expiration of the Tender validity period by registered letter. This letter (hereinafter and in the Conditions of Contract called "Letter of Acceptance") will indicate the sum that the T.T.Devasthanams will pay the Contractor in consideration of the execution, completion, and maintenance of the Works by the Contractor as prescribed by the Contract (hereinafter and in the Contract called the "Contract Amount").*

26.4 *When a tender is to be accepted the concerned tenderer shall attend the office of the Superintending Engineer concerned on the date fixed in the Letter of acceptance. Upon intimation being given by the Superintending Engineer, of acceptance of his tender, the tenderers shall make payment of the balance E.M.D., and additional security deposit wherever needed by way of DD /BG obtained from a Nationalized / Scheduled Bank with a validity period of* ***3 months for DD. In case of BG with a validity of (Contract period + (Defect liability period of 24 Months) + 28 days drawn in favour of The Executive officer, TTD, Tirupathi for balance EMD and with a validity of Contract period + 28 days for additional security deposit*** *and sign an agreement in the form prescribed by the department for the due fulfillment of the contract. Failure to attend the Superintending Engineer's office on the date fixed, in the written intimation, to enter into the required agreement shall entail forfeiture of the Earnest Money deposited. The written agreement to be entered into between the contractor and the T.T.Devasthanams shall be the foundation of the rights and obligations of both the parties and the contract shall not be deemed to be complete until the agreement is first signed by the contractor and then by the proper officer authorized to enter into contract on behalf of the T.T.Devasthanams.*

26.5 *The successful tenderer has to sign an agreement within a period of* ***15 days*** *from the date of receipt of communication of acceptance of his tender. This shall be done along with submission of all the uploaded documents, attested copies of uploaded documents,* ***BG / Online payment receipt /e-challan for EMD***, ***BG / DD for balance EMD***, *DD for APTS and other documents if any. On failure to do so his tender will be cancelled without issuing any further notice and action will be initiated for black listing the tenderer.*

26.6 If the lowest bidder backs out at the time of agreement, penalty of forfeiture of EMD will be imposed and business of the agency will be suspended for one year with all the Departments in A.P in respect of conventional tenders also vide G.O.Ms.No. 259 of T, R&B (R.V) dept., dt. 6.9.2008.

27 Notification of Award and Signing of Agreement.

27.1 *The Tenderer whose Tender has been accepted will be notified of the award of the work by the Executive Engineer / Superintending Engineer / Chief Engineer, prior to expiration of the Tender validity period by registered letter. This letter (hereinafter and in the Conditions of Contract called*

"Letter of Acceptance") will indicate the sum that the T.T.Devasthanams will pay the Contractor in consideration of the execution, completion, and maintenance of the Works by the Contractor as prescribed by the Contract (hereinafter and in the Contract called the "Contract Amount").

27.2 *When a tender is to be accepted the concerned tenderer shall attend the office of the Executive Engineer / Superintending Engineer concerned on the date fixed in the Letter of acceptance. Upon intimation being given by the Executive Engineer / Superintending Engineer / Chief Engineer, of acceptance of his tender, the tenderers shall make payment of the balance E.M.D., and additional security deposit wherever needed by way of* ***Bank Guarantee / Demand Draft*** *obtained from a Nationalized / Scheduled Bank with a validity period of 6 months, and sign an agreement in the form prescribed by the department for the due fulfillment of the contract. Failure to attend the Executive Engineer / Superintending Engineer's office on the date fixed, in the written intimation, to enter into the required agreement shall entail forfeiture of the Earnest Money deposited. The written agreement to be entered into between the contractor and the T.T.Devasthanams shall be the foundation of the rights and obligations of both the parties and the contract shall not be deemed to be complete until the agreement is first signed by the contractor and then by the proper officer authorized to enter into contract on behalf of the T.T.Devasthanams.*

27.3 *The successful tenderer has to sign an agreement within a period of* ***15 days*** *from the date of receipt of communication of acceptance of his tender. This shall be done along with submission of all the uploaded documents, attested copies of uploaded documents,* ***BG / Online payment receipt/e-challan*** *for EMD,* ***Bank Guarantee / Demand Draft*** *for balance EMD, DD for APTS and other documents if any. On failure to do so his tender will be cancelled without issuing any further notice and action will be initiated for black listing the tenderer.*

28 *Corrupt or Fraudulent Practices*

28.1 *The TTD requires that the bidders / suppliers / contractors under TTD financed contracts, observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, the T.T.Devasthanams.*

(a) Define for the purposes of the provision, the terms set forth below as follows:

(i) "Corrupt practices" means the offering, giving, receiving or soliciting of anything of value to influence the action of a T.T.Devasthanams official in procurement process or in contract execution: and

(i) "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the T.T.Devasthanams and includes collusive practice among Tenderers (prior to or after Tender submission) designed to establish in Tender prices at artificial non-competitive levels and to deprive the T.T.Devasthanams of the benefits of free and open competition.

(b) Will reject a proposal for award if it determines that the Tenderer recommended for award has engaged corrupt or fraudulent practices in competing for the contract in question.

(c) Will blacklist / or debar a firm, either indefinitely or for a stated period of time, if at any time determines that the firm has engaged corrupt or fraudulent practices in competing for, or in executing a T.T.Devasthanams Contract.

(d) Furthermore, Tenderers shall be aware of the provisions stated in the General Conditions of Contract.

QUALIFICATION INFORMATION
Annexure –I
CHECKLIST TO ACOMPANY THE TENDER

S.No	***Description***	***Uploaded***
1	***2***	***3***
1	*Copy of valid Registration of Contractors under appropriate* ***Class-I (Electrical)*** *TTD Registered Contractors/Government Department of State / Central / Other State Contractor who are eligible to quote of this value of work as per the terms and conditions of Registration certificate*	*Mandatory*
2	*The contractor shall furnish their copy of permanent account number* ***PAN Card***	*Mandatory*
3	The contractor must have an active/valid registration number with the GST authorities **within the State of Andhra Pradesh** if in case not already registered shall undertake by affidavit to cause registered before price bid finalization and letter of acceptance, for entering of contract agreement and for any such default not only forfeiture of EMD, but also be made liable for other civil and penal consequences.	*Mandatory*
4	**EMD ₹55,000/-** by BG (valid for 6 Months) **on or after 14-10-2026** or Online payment/Challan as per NIT and also furnish copy of on line receipt in the case of on-line.	*Mandatory*
5	Details of value of similar works executed in the last 5 financial years (2021-22 to 2025-26) in the Tenderers name in Statement-I with supporting certificates.	*Mandatory*
6	Details of similar works completed as Prime Contractor (in the same name) of value not less than **₹54,85,139.26** in any one financial year during the last five financial Years (2021-22 to 2025-26) in Statement-II with supporting certificates.	*Mandatory*
7	Quantities of similar work executed as Prime Contractor (in the same name) in any one financial year during last 5 financial years - in Statement – III with supporting certificates. Sl No | Description of work | Qty. 1 | *Supply & Transportation of 3 ½ UG cable* | *400 m*	*Mandatory*
8	*Details of existing commitments i.e., works on hand in* ***Statement - IV (A and B)***	*Mandatory*
9	Availability of Key personnel in Statement - V. i) Graduate Engineer (Electrical) - 1 No. *ii)* Diploma Holder (Electrical) - 1 No.	*Mandatory*
10	*Litigation history in Statement - VI.*	*Mandatory*
11	*Proof of liquid assets / Credit facilities (Credit facility / letter of credits / Solvency certificates from Banks etc.) for* ***₹27,42,569.63*** *Not older than one year and should have the validity sufficiently beyond the date of tender*	*Mandatory*
12	Bid capacity : 2AN-B ≥ **₹54,85,139.26**	*Mandatory*
13	*Declaration as per Annexure – II*	*Mandatory*

Note :

1. The statements furnished shall be in the formats appended to the tender document.
2. The information shall be filled-in by the tenderer in the checklist and statements I to VI, and shall be enclosed to the Technical bid for the purposes of verification as well as evaluation of the tenderer's Compliance to the qualification criteria as

provided in the Tender document. All the Certificates, documents, statements as per check-list shall be submitted on line by the tenderer.

3. The bidder shall sign on all the statements, documents, certificates uploaded by him owning the responsibility for their correctness/authenticity.
4. Certificate from Chartered Accountant supported with Annual Balance Sheet tallying with I.T. Clearance certificate. The turn over shall be from similar works and from Govt/semi Govt/Quasi Govt/PSUS/TTD only. This shall clearly & explicitly brought out in the certificate. If the certificate does not specify the Turnover with reference to Govt / Quasi Govt / PSUS / TTD, then the same will not be CONSIDERED. No clarification will be sought for.

FOR BIDDERS NOT BEEN HAVING VALID GST REGISTRATION WITH IN STAE OF ANDHRA PRADESH

The Bidder / Tenderer must have an active / valid registration number, with the GST authorities within the State of Andhra Pradesh. If in case not already registered within the state of Andhra Pradesh shall undertake by affidavit to cause registered before Price bid finalisation and letter of acceptance for entering of contract agreement and for any such default not only forfeiture of EMD but also be made liable for other civil and penal consequences.

GST REGISTRATION DECLARATION
AFFIDAVIT

I / We _____ has gone through the said GST condition and solemnly declare that I / we will abide to the said condition for any penal action if not got registered with GST authorities within state of Andhra Pradesh before entering into the L.S. Agreement for the subject work for which I / We undertake by affidavit on a non-judicial stamped paper to that effect.

Signature of the Tenderer

ANNEXURE –II
DECLARATION

I / WE ..... have gone through carefully all the Tender conditions and solemnly declare that I / we will abide by any penal action such as disqualification or black listing or determination of contract or any other action deemed fit, taken by, the Department against us, if it is found that the statements, documents, certificates produced by us are false / fabricated.

I / WE hereby declare that, I / WE have not been blacklisted / debarred / Suspended / demoted in any department in Andhra Pradesh or in any State due to any reasons.

Signature of the Tenderer

STATEMENT – I

Details of value of similar works executed in each year during the last five financial years by the Tenderer.

Sl. No.	***Financial Year***	***Value in Rs.***
1.	*2021- 2022*	
2.	*2022- 2023*	
3.	*2023- 2024*	
4.	*2024-2025*	
5.	*2025-2026*	

a) *Attach certificate(s) issued by the Executive Engineer concerned and counter signed by Superintending Engineer showing work wise / year wise value of work done in respect of all the works executed by the Tenderer during last five years*

OR

b) *Certificate from Chartered Accountant supported with Annual Balance Sheet tallying with I.T. Clearance certificate. The turn over shall be from similar works and from Govt/semi Govt/Quasi Govt/PSUS/TTD only. This shall clearly & explicitly brought out in the certificate.* ***If the certificate does not specify the Turnover with reference to Govt / Quasi Govt / PSUS / TTD, then the same will not be CONSIDERED. No clarification will be sought for***

Signature of the Tenderer

STATEMENT – II

Details of similar works completed in the Name of the Tenderer during the last five financial years.

Sl. No	*Name of the work*	*Address of Agt. Concluding Authority*	*Agreement No. & dated.*	*Value of Contract*
1	*2*	*3*	*4*	*5*

Stipulated period of completion	*Actual date of completion*	*Value of work done year wise during the last 'five' years.*					*Total value of work done.*
		1st Year	*2nd Year*	*3rd Year*	*4th Year*	*5th Year*	
6	*7*	*9*	*10*	*11*	*12*	*13*	*14*

Attach certificates issued by the Executive Engineer concerned and countersigned by the concerned Superintending Engineer showing work wise / year wise value of work done and date of completion.

Signature of the Tenderer

STATEMENT – III

Physical quantities executed by the Tenderer in the last five financial years. [work wise / year wise].

Sl. No.	*Financial Year*	*Name of work*	*Agt. No.*	*Quantities executed / Year wise.*					*Any other items.*
1	*2*	*3*	*4*	*5*	*6*	*7*	*8*	*9*	*10*
1 *2* *3* *4* *5*									

Attach certificates in support of the quantities mentioned in the Schedule issued by the Executive Engineer concerned and countersigned by the concerned Superintending Engineer duly showing the quantities executed year wise.

Signature of the Tenderer

STATEMENT – IV

Details of Existing Commitments.

Details of works on hand and, yet to be completed as on the date of submission of the Tender and works for which Tenders have been awarded as on the date of submission of Tender are to be furnished.

A) Existing Commitments on ongoing works:

Sl.No	*Name of work*	*Address of Agt. concluding authority*	*Agt. No. & Date*	*Value of contract*	*Stipulated period of completion*	*Value of work done so far.*	*Balance Value of works to be completed*	*Anticipated date of completion*	*Updated value of balance work*
1	*2*	*3*	*4*	*5*	*6*	*7*	*8*	*9*	*10*

Signature of the Tenderer

B) Details of works for which Tenders are submitted [awarded / likely to be awarded]

Sl. No.	*Name of work*	*Address of Agt. concluding authority*	*Estimated value of work*	*Stipulated period of completion*	*Date on which tender was submitted*	*Present stage of Tender.*
1	*2*	*3*	*4*	*5*	*6*	*7*

Signature of the Tenderer

STATEMENT – V.

Availability of Key Personnel

Qualification and experience of Key Personnel proposed to be deployed for execution of the Contract.

Sl. No	*Name*	*Designation*	*Qualification*	*Total Experience*	*Working with the Tenderer since.*
1	*2*	*3*	*4*	*5*	*6*

Signature of the Tenderer

STATEMENT - VI

Information on litigation history in which Tenderer is the Petitioner.

S. No	*Case No. / Year*	*Court where filed.*	*Subject Matter / Prayer in the case.*	*Respondents i.e., SE / CE*	*Present Stage.*
1	*2*	*3*	*4*	*5*	*6*

Signature of the Tenderer

CONDITIONS OF CONTRACT

TENDER

Date: .....

To
The Executive Officer,
T.T.Devasthanams,
Tirupati.

Sir,

I / We do hereby tender and if this tender be accepted, under take to execute the following work viz. **"**Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala.**"** *as shown in the drawings (whenever applicable) and described in the specifications deposited in the office of the Executive Engineer / Superintending Engineer – II, TTD, Tirupati with such variations by way of alterations or additions to, and omissions from the said works and method of payment as provided for in the "conditions of the contract" for the sum of* ***₹54,85,139.26 In words (Rupees Fifty Four Lakh Eighty Five Thousand One Hundred Thirty Nine and Paise Twenty Six only)*** *or such other sum as may be arrived under the clause of the standard preliminary specifications relating to "Payment on lump-sum basis or by final measurement at unit rates"*

I / WE have also quoted percentage excess or less on E.C.V., in Schedule 'A' Part I, annexed (in words and figures) for which I/We agree to execute the work when the lump sum payment under the terms of the agreement is varied by payment on measurement quantities. I/WE have quoted Percentage excess or less on E.C.V., in Schedule 'A'.

I / WE agreed to keep the offer in this tender valid a period of Three month(s) mentioned in the tender notice and not to modify the whole or any part of it for any reason within above period. If the tender is withdrawn by me/us for any reasons whatsoever, the earnest money paid by me/us will be forfeited to TTD.

I / WE hereby distinctly and expressly, declare and acknowledge that, before the submission of my/our tender I/We have carefully followed the instructions in the tender notice and have read the A.P.S.S. and the preliminary specifications therein and the A.P.S.S. addenda volume and that I/We have made such examination of the contract documents and the plans, specifications and quantities and of the location where the said work is to be done, and such investigation of the work required to be done, and in regard to the material required to be furnished as to enable me/us to thoroughly understand the intention of same and the requirements, covenants, agreements, stipulations and restrictions contained in the contract, and in the said plans and specifications and distinctly agree that I/We will not hereafter make any claim or demand upon the TTD based upon or arising out of any alleged misunderstanding or misconception /or mistake on my/or our part of the said requirement, covenants, agreements, stipulations, restrictions and conditions.

I / WE enclosed to my/our Tender schedule a crossed ***BG / Online payment receipt/e-challan*** *No……dated:…… for Rs……, drawn on Bank:…… …… Place: …… as earnest money not to bear interest.*

I/WE shall not assign the contractor or sublet any portion of the same. In case if it becomes necessary such subletting with the permission of the Executive Engineer shall be limited to (1) Labour contract, (2) Material contract, (3) Transport contract and (4) Engaging specialists for special item of work enjoined in A.P.S.S.

IF MY/OUR tender is not accepted the sum shall be returned to me/us on application when intimation is sent to me/us of rejection or at the expiration of three months from last date of receipt of this tender, whichever is earlier. If my/our tender is accepted the earnest money shall be retained by the TTD as security for the due fulfillment of this contract. If upon written intimation to me/us by the Superintending / Executive Engineer's Office, I/We fail to attend the said office on the date herein fixed or if upon intimation being given to me/us by the Superintending /Executive Engineer or acceptance of my/our tender, and if I/We fail to make the additional security deposit or to enter into the required agreement as defined in condition-3 of the tender notice, then I/We agree for the forfeiture of the earnest money. Any notice required to be served on me/us here under shall be sufficiently served on me/us hereunder shall be sufficiently served on me/us if delivered to me/us personally or forwarded to me/us by post to (registered or ordinary) or left at my/our address given herein. Such notice shall if sent by post be deemed to have been served on me/us at the time when in due course of post it would be delivered at the address to which it is sent.

I/WE fully understand that the written agreement to be entered into between me/us and Government shall be the foundation of the rights of the both the parties and the contract shall not be deemed to be complete until the agreement has first been signed by me/us and then by the proper officer authorized to enter into contract on behalf of T.T.D.

I AM / WE ARE professionally qualified in my/our qualifications are given below:

Name	*Qualified*

I/WE will employ the following technical staff for supervising the work and will see that one of them is always at site during working hours, personally checking all items of works and pay extra attention to such works as required special attention (eg) Reinforced concrete work, water proofing, centering etc.,.

Name of members of technical staff proposed to be employed	*Qualification.*

I / WE declare that I/WE agree to recover the salaries of the technical staff actually engaged on the work by the department, from the work bills, if I/We fail to employ technical staff as per the tender condition.

TENDERERS / CONTRACTOR'S CERTIFICATE.

(1) *I/WE hereby declare that I/We have perused in detail and examined closely the Andhra Pradesh Standard Specifications, all clauses of the preliminary specifications with all amendments and have either examined all the standards specifications or will examine all the standard specifications for items for which I/We tender, before I/We submit such tender and agree to be bound and comply with all such specifications for this agreement which I/We execute in the TTD.*

(2) *I/WE certify that I/We have inspected the site of the work before quoting my Percentage excess or less on ECV, I /We have satisfied about the quality, availability and transport facilities for stones, sand and other materials.*

(3) *I/WE am/are prepared to furnish detailed data in support of all my quoted rates, if and when called upon to do so without any reservations.*

(4) *I/WE hereby declare that I/We will pay an additional security deposit in terms of conditions 3.3 of general instructions to tenderer.*

(5) *I/WE hereby declare that I am/we are accepting to reject my tender in terms of condition 3.4 general instructions to tenderer.*

(6) *I/WE hereby declare that I/We will not claim any price escalation.*

(7) *I/WE hereby declare that I am/we are accepting for the* ***defect liability period as 24 months*** *instead of 6 months under clause 28 of APSS.*

(8) *a) I/WE declare that I/WE will procure the required construction materials including earth and use for the work after approval of the Engineer-in-Charge. The responsibility for arranging and obtaining the land for borrowing or exploitation in any other way shall rest with me/us for the materials for construction, I/WE shall ensure smooth and un-interrupted supply of materials.*

B) I/WE declare that the responsibility for arranging and obtaining the land for disposal of spoil/soil not useful for construction purposes shall rest with me/us.

C) I/WE declare that I/WE shall not claim any compensation or any payment for the land so arranged for disposal of soil and the land for borrow area. My/our quoted percentage excess or less ECV., are inclusive of the land so arranged and I/We will hand over the land so arranged for disposal of soil to; the department after completion of work.

D) I/WE declare that I/WE will not claim any extra amount towards any material used for the work other than the quoted works for respective schedule 'A' items.

(9) *I/WE declare that I/WE will execute the work as per the mile stone programme, and if I/WE fail to complete the work as per the mile stone programme I abide by the condition to recover liquidated damages as per the tender conditions.*

(10) *I / WE declare that I/WE will abide for settlement of disputes as per the tender conditions.*

DECLARATION OF THE TENDERER.

1) *I/WE have not been black listed in any department in Andhra Pradesh or any State or Centre or Statuary Bodies due to any reasons.*

2) *I/WE have not been demoted to the next lower category for not filing the tenders after buying the tender schedules in a whole year and my/our registration has not been cancelled for a similar default in two consecutive years.*

3) *I/WE agree to disqualify me/us for any wrong declaration in respect of the above and to summarily reject my/our tender.*

Address of the Tenderer :

Phone No. :

Fax No. :

CONTRACTOR.

CONDITIONS OF CONTRACT

A. GENERAL

1. Interpretation:

1.1 In interpreting these Conditions of Contract, singular also means plural, male also means female, and vice-versa. Headings have no significance. Works have their normal meaning under the language of the contract unless specifically defined. The Engineers-in-charge will provide instructions clarifying queries about the conditions of Contract.

1.2 The documents forming the Contract shall be interpreted in the following order of priority:

1) Agreement
2) Letter of Acceptance, notice to proceed with the works
3) Contractor's Tender (Technical bid)
4) Conditions of contract
5) Drawings
6) Bill of quantities (Price-bid)
7) Any other document listed as forming part of the Contract.
8) EMD.

2. Engineer-in-Charge's Decisions:

Except where otherwise specifically stated, the Engineer-in-charge will decide the contractual matters between the Department and the Contractor in the role representing the Department.

3. Delegation:

The Engineer-in-charge may delegate any of his duties and responsibilities to other officers and may cancel any delegation by an official order issued.

4. Communications:

Communications between parties, which are referred to in the conditions, are effective only when in writing. A notice shall be effective only when it is delivered (in terms of Indian Contract Act)

5. Other Contractors:

The Contractor shall cooperate and share the Site with other contractors, Public authorities, utilities, and the Department. The Contractor shall also provide facilities and services for them as directed by the Engineer-in-charge.

6. Personnel:

6.1 The Contractor shall employ the required Key Personnel named in the Schedule of Key Personnel to carry out the functions stated in the Schedule or other personnel approved by the Engineer-in-charge. The Engineer-in-charge will approve any proposed replacement of Key Personnel only if their qualifications, abilities, and relevant experience are substantially equal to or better than those of the personnel listed in the Schedule.

6.2 Failure to employ the following minimum required technical personnel by the contractor the following amounts will be recovered from the contractor over and above the provision made in part two of schedule 'A' from the contractor bills

S.No	Contract value of works to be executed.	Technical staff to be employed	For non-employment of the technical staff, rates of recovery per month
1	Above **₹ 15.00** Lakhs	One Graduate Engineer (Electrical) and One Diploma Holder (Electrical)	Graduate Engineer-40,200/- per month Diploma Holder-31,200/-per month

6.3 The technical personnel should be on full time and available at site whenever required by Engineer in Charge to take instructions.

6.4 The names of the technical personnel to be employed by the contractor should be furnished in the statement enclosed separately.

6.5 In case the contractor is already having more than one work on hand and has undertaken more than one work at the same time, he should employ separate technical personnel on each work.

If the contractor fails to employ technical personnel then the work will be suspended or department will engage technical personnel and recover the cost thereof from the contractor

If the Engineer-in-charge asks the Contractor to remove a person who is a member of Contractor's staff or his work force stating the reasons the Contractor shall ensure that the person leaves the site forthwith and has no further connection with the work in the contract.

7. Contractor's Risks:

All risks of loss of or damage to physical property and of personnel injury and death, which arise during and in consequence of the performance of the Contract are the responsibility of the Contractor.

8. Deleted.

9. Site Inspections:

9.1 The contractor should inspect the site and also proposed quarries of choice for materials, source of water and quote his percentage including quarrying, conveyance and all other charges etc.

9.2 The responsibility for arranging the land for borrow area rests with the Contractor and no separate payment will be made for procurement or otherwise. The contractor's quoted percentage will be inclusive of land cost.

10. Contractor to Construct the Works:

The Contractor shall construct and Commission the Work in accordance with the specifications and Drawings.

11. Power Supply:

(a) The contractor shall make his own arrangements for obtaining power from the Electricity dept., at his own cost. The contractor will pay the bills of Electricity Department for the cost of power consumed by him.

(b) The contractor shall satisfy all the conditions and rules required as per Indian Electricity Act 1910 and under Rule-45(I) of the Indian Electricity Rules, 1956 as amended from time to time and other pertinent rules.

(c) The power shall be used for bonafide Departmental work only.

12. Tollgate at Alipiri (For Tirumala works):

The contractor has to pay the necessary tollgate fee at Alipiri, Tirupati, for conveyance of materials, machinery, vehicles etc., to Tirumala as applicable. The vehicles of the contractor will be permitted during 5 AM to 7 PM only. The contractor has to quote their rates accordingly.

13. Temporary Diversions (Works on Highways)

13.1 The contractor shall at all times carryout work on the highway in a manner creating least interference to the flow of traffic while consistent with the satisfactory execution of the same. For all works involving improvements to the existing highway, the contractor shall in accordance with the directions of the Engineer-in-charge provide and maintain during the execution of the work a passage for traffic, either along a part of the existing carriage way under improvement or along a temporary diversion constructed close to the highway.

13.2 If in the opinion of the Engineer-in-Charge, it is not possible to pass the traffic on part width of the carriage-way for any reason, a temporary diversion close to the highway shall be constructed as directed. It shall be paved with the materials such as hard morum, gravel and stone, metal to the specified thickness as directed by the Engineer-in-Charge. In all cases, the alignment, gradients and surface type of the diversion including its junctions, shall be approved by the Engineer-in-charge before the highway is closed to traffic.

13.3 The contractor shall take all necessary measures for the safety of traffic during construction and provide erect and maintain such barricades, including signs, markings, flags lights and information and protection of traffic approaching or passing through the section of the highway under improvement. Before taking up any construction, an agreed phased programme for the diversion of traffic on the highway shall be drawn up in consultation with the Engineer-in-charge.

13.4 The barricades erected on either side of the carriage way portion of the carriage way closed to traffic, shall be of strong design to resist violation and painted with alternative black and white stripe. Red lanterns or warnings lights of similar type shall be mounted on the barricades at night and kept lit throughout from sunset to sunrise.

14. Ramps:

Ramps required during execution may be formed wherever necessary and same are to be removed after completion of the work. No separate payment will be made for this purpose.

15. Monsoon Damages:

Damages due to rain or flood either in cutting or in banks shall have to be made good by the contractor till the work is handed over to the Department. The responsibility of de-silting and making good the damages due to rain or flood rests with the contractor. No extra payment is payable for such operations and the contractor shall therefore, have to take all necessary precautions to protect the work done during the construction period.

16. The works to be Completed by the Intended Completion Date:

The Contractor may commence execution of the Works on the Start Date and shall carry out the Works in accordance with the programme submitted by the Contractor, as updated with the approval of the Engineer-in-Charge, and complete the work by the Intended Completion Date.

17. Safety:

The Contractor shall be responsible for the safety of all activities on the Site.

18. Discoveries:

Anything of historical or other interest or of significant value unexpectedly discovered on the Site is the property of the Government / T.T. Devasthanams. The Contractor is to notify the Engineer-in-charge of such discoveries and carry out the Engineer-in-Charge's instructions for dealing with them.

19. Possession of the Site.

The Department shall give possession of the site to the Contractor. If possession of a part site is given, the Department will ensure that the part site so handed over is amenable to carry out the work at site by the Contractor.

20. Access to the Site:

The Contractor shall provide the Engineer-in-Charge and any person authorised by the Engineer-in-Charge, access to the site and to any place where work in connection with the Contract is being carried out or is intended to be carried out.

21. Instructions:

The Contractor shall carry out all instructions of the Engineer-in-charge and comply with all the applicable local laws where the Site is located.

22. Settlement of disputes:

22.1 If any dispute of difference of any kind whatsoever arises between the department and the Contractor in connection with, or arising out of the Contract, whether during the progress of the works or after their completion and whether before or after the termination, abandonment or breach of the Contract, it shall in the first place, be referred to and settled by the Engineer-in-charge who shall, within a period of thirty days after being requested by the Contractor to do so, give written notice of his decision to the Contractor. Upon receipt of the written notice of the decision of the Engineer-in-Charge the Contractor shall promptly proceed without delay to comply with such notice of decision.

22.2 If the Engineer-in-Charge fails to give notice of his decision in writing within a period of thirty days after being requested or if the Contractor is dissatisfied with the notice of the decision of the Engineer-in-Charge, the Contractor may within thirty days after receiving the notice of decision appeal to the Department who shall offer an opportunity to the contractor to be heard and to offer evidence in support of his appeal, the Department shall give notice of his decision within a period of thirty days after the Contractor has given the said evidence in support of his appeal, subject to arbitration, as hereinafter provided. Such decision of the Department in respect of every matter so referred shall be final and binding upon the Contractor and shall forthwith be given effect to by the Contractor, who shall proceed with the execution of the works with all due diligence whether he requires arbitration as hereinafter provided, or not. If the Department has given written notice of his decision to the Contractor and no claim to arbitration, has been communicated to him by the Contractor within a period of thirty days from receipt of such notice the said decision shall remain final and binding upon the Contractor. If the Department fail to give notice of his decision, as aforesaid within a period of thirty days after being requested as aforesaid, or if the Contractor be dissatisfied with any such decision, then and in any such case the contractor within thirty days after the expiration of the first named period of thirty days as the case may be, require that the matter or matters in dispute be referred to arbitration as detailed below:-

SETTLEMENT OF CLAIMS:

1. Any dispute arising out of this Agreement up to Rs.1,00,00,000/- has to be settled by way of negotiation and conciliation between the TTD (Concerned Authority) and the Contractor. If there is no cordial settlement between the parties, then the matter shall be referred to an In-house

Arbitration for settlement of several small claims as mentioned below in order to save money and time of both parties:

(a): Claims up to the value of Rs.10,00,000/-

Superintending Engineer (of another circle working in TTD as decided by the Executive Officer, TTD)

(b): Claims from Rs.10,00,001/- up to Rs.1,00,00,000/-

Chief Engineer (other than the person working in TTD and any other person working in Government Department of AP) as decided by the Executive Officer, TTD.

The Sole Arbitrator appointed as above shall conduct the proceedings as per the provisions of Arbitration and Conciliation Act 1996 and amendments thereon, from time to time. The place of Arbitration is at Tirupati. The Arbitration proceedings shall be conducted in English Language. The Arbitrator is entitled the fee as per the Fourth Schedule of Arbitration and Conciliation Act, 1996 and amendments thereon, from time to time. Both parties shall bear the fee of the Arbitrator and expenses for conducting Arbitration Proceedings equally. The Arbitrator shall dispose off the proceedings strictly within the time as stipulated in Arbitration and Conciliation Act, 1996 and amendments thereon, from time to time.

2: Claims above Rs.1,00,00,000/-

All the claims above Rs.1,00,00,000/- have to be settled by approaching the Civil Court only by filing a civil suit, but not by way of Arbitration. The Arbitration clauses mentioned under sub-clause 1(a) & (b) above, are nothing to do relating to the claims more than Rs.1,00,00,000/-.

The Courts at Tirupati, Chittoor District, Andhra Pradesh shall alone have jurisdiction to entertain any such suit arising under this Agreement.

22.3 ***JURISDICTION:***

For the purpose of this agreement all the transactions shall be deemed to have taken place within the state of ANDHRA PRADESH and the courts in ANDHRA PRADESH shall have jurisdiction over the matters arising under or out of this agreement.

B. TIME FOR COMPLETION

23. Program:

23.1 The total period of completion is ***six (06) Months*** *from the date of entering with agreement to proceed including rainy season. Keeping in view , the schedule handing over of site given in condition 23.4 of (ii) work should be programmed such as to achieve the mile-stones as in "Rate of progress statement" enclosed, in clause 23.4.*

23.2 The attention of the tenderer is directed to the contract requirement at the time of beginning of the work, the rate of progress and the dates for the whole work and its several parts as per milestones. The following rate of progress and proportionate value of work done from time to time as will be indicated by the Executive Engineer's Certificate for the value of work done and completion of mile-stones will be required. Date of commencement of their programme will be the date for concluding agreement.

23.3 After signing the agreement, the contractor shall forthwith begin the work, shall regularly and continuously proceed with them.

23.4 ***Rate of progress:***

i) Work programme of achieving the milestones.

Sl.No.	*Period after date of signing in the agreement..*	*% of work to be completed (Based on contract lump-sum amount)*
1	*Up to end of 3rd month*	*50 %*
2	*Up to end of 6th month*	*100 %*

ii) Site Schedule of programme after signing in the agreement by the contractor.

23.5 The contractor shall commence the works on site within the period specified under condition 23.1 to 23.4 above after the receipt by him of a written order to this effect from the Executive Engineer / Superintending Engineer and shall proceed with the same with due expedition and without delay, except as may be expressly sanctioned or ordered by the Executive Engineer / Superintending Engineer, or be wholly beyond the contractor's control.

23.6 Save in so far as the contractor may prescribe, the extent of portions of the site of which the contractor is to be given possession from time to time and the order in which such portions shall be made available to him and, Subject to any requirement in the contract as to the order in which the works shall be executed, the Executive Engineer / Superintending Engineer will, with the Executive Engineer's written order to commence the works, give to the contractor possession of so much of the site as may be required to enable the contractor to commence proceed with the execution of the works in accordance with the programme if any, and otherwise in accordance with such reasonable proposals of the contractor as he shall by written notice to the Executive Engineer / Superintending Engineer, make and will from time to time as the works proceed, give to the contractor possession of such further portions of the site as may be required to enable the contractor to proceed with the execution of the works with due dispatch in accordance with the said programme or proposals as the case maybe ; if the contractor suffers delay or incurs cost from failure on the part of the Executive Engineer / Superintending Engineer to give possession in accordance with the terms of this clause, the Competent authority shall grant an extension of time for the completion of works.

23.7 The contractor shall bear all costs and charges for special or temporary way leases required by him in connection with access to the site. The contractor shall also provide at his own cost any additional accommodation outside the site required by him for the purposes of the work.

23.8 Subject to any requirement in the contract as to completion of any section of the works before completion of the whole of the works shall be completed in accordance with provisions of clauses in the Schedule within the time stated in the contract calculated from the last day of the period named in the statement to the tender as that within which the works are to be commenced or such extended time as may be allowed.

23.9 ***Delays and extension of time:***

No claim for compensation on account of delays or hindrances to the work from any cause whatever shall lie, except as hereafter defined. Reasonable extension of time will be allowed by the Executive Engineer or by the officers competent to sanction the extension, for unavoidable delays, such as may result from causes, which in the opinion of the Executive Engineer, are undoubtedly beyond the control of the contractor. The Executive Engineer shall assess the period of delay or hindrance caused by any written instructions issued by him, at twenty five per cent in excess or the actual working period so lost.

In the event of the Executive Engineer failing to issue necessary instructions and thereby causing delay and hindrance to the contractor, the latter shall have the right to claim an assessment of such delay by the Superintending Engineer of the Circle whose decision will be final and binding. The contractor shall lodge in writing with the Executive Engineer a statement of claim for any delay or hindrance referred to above, within fourteen days from its commencement, otherwise no extension of time will be allowed.

Whenever authorized alterations or additions made during the progress of the work are of such a nature in the opinion of the Executive Engineer as to justify an extension of time in consequence thereof, such extension will be granted in writing by the Executive Engineer or other competent authority when ordering such alterations or additions.

24. Construction Programme:

24.1 The Contractor shall furnish within one month of the order of the work a programme showing the sequence in which he proposed to carry out the work, monthly progress expected to be achieved, also indicating date of procurement of materials plant and machinery. The schedule should be such that it is practicable to achieve completion of the whole work within the time limit fixed and in keeping with the Mile stone programme specified and shall obtain the approval of the Engineer-in-charge. Further rate of the progress as in the program shall be kept up to date. In case it is subsequently found necessary to alter this program, the contractor shall submit sufficiently in advance the revised program incorporating necessary modifications and get the same approved by the Engineer-in-charge. No revised program shall be operative without approval of Engineer-in-charge.

24.2 The Superintending Engineer shall have all times the right, without any way violating this contract, or forming grounds for any claim, to alter the order of progress of the works or any part thereof and the contractor shall after receiving such directions proceed in the order directed. The contractor shall also report the progress to the Superintending Engineer within 7 days of the Executive Engineer's direction to alter the order of progress of works.

24.3 The Contractor shall give written notice to the Engineer-in-Charge whenever planning or progress of the works is likely to be delayed or disrupted unless any further drawings or order including a direction, instruction or approval is issued by the Engineer-in-Charge within a reasonable time. The notice shall include details of the drawing or order required and of why and by when it is required and of any delay or disruption likely to be suffered if it is late.

25. Speed of Work:

25.1 The Contractor shall at all times maintain the progress of work to conform to the latest operative progress schedule approved by the Engineer-in-Charge. The contractor should furnish progress report indicating the programme and progress once in a month. The Engineer-in-Charge may at any time in writing direct the contractor to slow down any part or whole of the work for any reason (which shall not be questioned) whatsoever, and the contractor shall comply with such orders of the Engineer-in-Charge. The compliance of such orders shall not entitle the contractor to any claim of compensation. Such orders of the Engineer-in-Charge for slowing down the work will however be duly taken into account while granting extension of time if asked by the contractor for which no extra payment will be entertained.

25.2 Delays in Commencement or progress or neglect of work and forfeiture of earnest money, Security deposit and withheld amounts:

If, at any time, the Engineer-in-Charge shall be of the opinion that the Contractor is delaying Commencement of the work or violating any of the provisions of the Contractor is neglecting or delaying the progress of the work as defined by the tabular statement. "Rate of progress" in the Articles of Agreement", he shall so advise the Contractors in writing and at the same time demand compliance in accordance with conditions of Tender notice. If the Contractor neglects to comply with such demand within seven days after receipt of such notice, it shall then or at any time thereafter, be lawful for the Engineer-in-Charge to take suitable action in accordance with Clause.60 of APSS.

26. Suspension of works by the Contractor:

26.1 If the Contractor shall suspend the works, or sublet the work without sanction of the Engineer-in-Charge, or in the opinion of the Engineer-in-Charge shall neglect or fail to proceed with due diligence in the performance of his part of the Contract as laid down in the Schedule rate of progress, or if he shall continue to default or repeat such default in

the respects mentioned in clause.27 of the APSS Engineer-in-Charge shall take action in accordance with Clause 61 of APSS.

26.2 If the Contractor stops work for 28 days and the Stoppage has not been authorised by the Engineer-in-Charge the Contract will be terminated under Clause 61 of APSS.

26.3 If the Contractor has delayed the completion of works the Contract will be terminated under Clause.61 of APSS.

27. Extension of the Intended Completion Date:

27.1 The Engineer-in-Charge shall extend or recommend for extension, in accordance with the Government orders in force, the Intended Completion Date if a Variation is issued which makes it impossible for Completion to be achieved by the Intended Completion Date.

27.2 The Engineer-in-Charge shall decide whether and by how much to extend the Intended Completion Date within 21 days of the Contractor asking the Engineer for a decision upon the effect of a Variation and submitting full supporting information. If the Contractor has failed to give early warning of a delay or has failed to cooperate in dealing with a delay, the delay by this failure shall not be considered in assessing the new Intended Completion Date.

28. Delays Ordered by the Engineer-in-Charge:

The Engineer-in-Charge may instruct the Contractor to delay the start or progress of any activity within the Work.

29. Early Warning:

29.1 The contractor is to warn the Engineer-in-Charge at the earliest opportunity of specific likely future events or circumstances that may adversely affect the Execution of Works.

29.2 The Contractor shall cooperate with the Engineer-in-Charge in making and considering proposals for how the effect of such an event or circumstance can be avoided or reduced by anyone involved in the work and in carrying out any resulting instruction of the Engineer-in-Charge.

30. Management Meetings:

The Engineer-in-Charge may require the Contractor to attend a management meeting. The business of a management meeting shall be to review the programme for remaining work and to deal with matters raised in accordance with the early warning procedure.

C. QUALITY CONTROL

31. Identifying Defects:

The Engineer-in-Charge shall check the Contractor's work and notify the Contractor of any Defects that are found. Such checking shall not affect the Contractor's responsibilities. The Engineer-in-Charge may instruct the Contractor to verify the Defect and to uncover and test any work that the Engineer considers may be a Defect.

32. Tests:

If the Engineer-in-Charge instructs the Contractor to carry out a test not specified in the Specification to check whether any work has a Defect and the Contractor shall pay for the test and any samples.

33. Correction of Defects:

33.1 The Engineer-in-Charge shall give notice to the Contractor of any Defects before the end of the Defects Liability Period, which begins on Completion. The defects liability period shall be extended for as long as defects remain to be corrected by the Contractor.

33.2 Every time notice of a Defect is given, the Contractor shall correct the notified defect within the length of time specified by the Engineer-in-Charge's notice.

34. Uncorrected Defects:

34.1 If the contractor has not corrected the defect within the time specified in the Engineer-in-Charge's notice, the Engineer-in-Charge will assess the cost of having the defect corrected and the contractor will pay this amount.

34.2 The Engineer-in-Charge shall introduce O.K. cards and prescribed the formats there of. O.K. cards shall relate to all major components of the work. The contractor / his authorised representative shall be required to initiate and fill in and present the O.K. card to the construction staff who would check the respective items and send to the quality control staff for final check and clearance / O.K. Any defects pointed out by the construction supervision staff or by the Quality Control staff shall promptly be attended to by the contractors and the fact of doing so be duly recorded on the back of O.K. card.

34.3 The Engineer-in-Charge may also introduce checklists, which shall be kept in Bound registers by the construction supervision staff. The contractor may be required to fill up these lists in the first instance and shall be subsequently checked by the Construction / Quality Control engineers.

35. Quality Control:

In addition to the normal inspection by the regular staff in-charge of the Construction of work, the work will also be inspected by the Executive Engineer Quality control staff and any other authorized external Agency if any sub-standard work or excess payments are noticed with reference to measurement books etc., during inspection, action will be taken based on their observations and these will be effected by the Engineer-in-Charge of the execution of the work.

For all works costing more than Rs.2.00 Crores the Contractor shall submit quality plan and also show proof of owning quality lab or tie-up with an established quality lab.

The quality control test reports and inspection reports shall invariably be accompanied with final bill for all capital works

D. Cost Control

36. Bill of Quantities:

36.1 The Bill Quantities shall contain items for the construction work to be done by the Contractor.

36.2 The Contractor is paid for the quantity of the work done at the estimate rate in the Bill of Quantities for each item plus or minus Tender percentage.

37. Changes in the Quantities:

37.1 The contractor is bound to execute all supplemental works that are found essential, incidental and inevitable during execution of main work.

37.2 The payment of rates for such supplemental items of work will be regulated as under;

37.3 Supplemental items directly deducible from similar items in the original agreement.

37.4 The rates shall be derived by adding to or subtracting from the agreement rate of such similar item the cost of the difference in the quantity of materials, labour between the new items and similar items in the agreement worked out with reference to the Standard Schedule of Rates adopted in the sanctioned estimate with which the tenders are accepted plus or minus over all tender percentage.

37.5 Similar items but the rates of which cannot be directly deduced from the original agreement.

37.6 Purely new items which do not correspond to any item in the agreement.

37.7 The rates of all such items shall be Estimated Rates plus or minus overall Tender premium.

38. Extra Items:

38.1 Extra items of work shall not vitiate the contract. The contractor shall be bound to execute extra items of work as directed by the Engineer-in-Charge. The rates for extra items shall be worked out by the Executive Engineer as per the conditions of the Contract and the same are binding on the Contractor.

38.2 The contractor shall before the 15th day of each month, submit in writing to the Executive Engineer a statement of extra items if any that they have executed during the preceding month failing which the contractor shall not be entitled to claim any.

38.3 Entrustment of additional items:

***38.3.1** Where ever additional items not contingent on the main work and outside the scope of original agreement are to be entrusted to the original contractor dispensing with bids and if the value of such items exceeds the limits up to which the officer is empowered to entrust works initially to contractor without calling for tenders, approval of **next higher authority** shall be obtained. Entrustment of such items on nomination shall be at rates not exceeding the estimated rates.*

***38.3.2** Entrustment of the additional items contingent on the main work will be authorized by the officers up to the monetary limits up to which they themselves are competent to accept items in the original agreement so long as the total amounts up to which they are competent to accept in an original agreement rates for such items shall be worked out in accordance with the procedure (I) For all items of work in excess of the quantities shown in the Bill of Quantities of the Tenders, the rate payable for such items shall be estimate rates for the items (+) or (-) over all tender percentage accepted by the competent authority.*

***38.3.3** Entrustment of either the additional or supplemental items shall be subject to the provisions of the agreement entered into by a Competent Authority after the tender is accepted. The Chief Engineer being the authority next higher to the Superintending Engineer, who entered into the agreement approves the rate for the items / variation in quantity in the current agreement. The items shall not be ordered by an officer on his own responsibility if the revised estimate or deviation statement providing for the same requires the sanction of higher authority.*

***Note:** It may be noted that the term Estimate Rate used above means the rate in the sanctioned estimate with which the tenders are accepted, or if no such rates is available in the estimate, the rate derived will be with reference to the Standard Schedule of Rates adopted in the sanctioned estimate with which tenders are accepted.*

39. Cash flow forecasts:

When the program is updated, the contractor is to provide the Engineer-in-charge with an updated cash flow forecast.

40. Payment Certificates:

40.1 The Contractor shall submit to the Engineer-in-charge monthly statements of the estimated value of the work completed less the cumulative amount certified previously.

40.2 The Engineer-in-charge shall check the Contractor's monthly statement within 14 days.

40.3 The value of work executed shall be determined by the Engineer-in-charge.

40.4 The value of work executed shall comprise the value of the quantities of the items in the Bill of Quantities completed.

40.5 The Engineer-in-charge may exclude any item certified in a previous certificate or reduce the proportion of any item previously certified in any certificate in the light of later information.

41. Payments:

41.1 Payment for the work done by the contractor will be made for the finished work based on the measurements recorded in measurement books by any officer of the department not lower in rank than a Assistant Engineer and check measured by any officer not lower in rank than a Deputy Executive Engineer. The measurement shall be recorded at various stages of the work done and also after work is completed. The contractor shall be present at the time of recording of each set of measurement and their check measurement and accept them then and there so as to avoid disputes at a later stage. If the contractor is not available at the work spot at the time of recording measurements or check measurements the particulars of measurements shall be signed by the authorised agent of contractor based on which the contractor shall accept the set of measurements without any further dispute. If for any reason the contractor's authorised agent is also not available at site when the department decides to suspend the work recording of measurements in the absence of the contractor or his authorised representative the department shall not entertain any claim from the contractor for any loss incurred by him on this account. The Contractor shall however note that the Department cannot indefinitely wait for recording the measurement due to the absence of the Contractor and his authorised agent and check measure them even in the absence of the contractor.

41.2 The contractor can claim part bills monthly once or unpaid amount accumulates to 20% of agreement value, which ever earlier. Accordingly, preparation & payment of part bill will be made by one week from the date of receipt of claim from the contractor. In the case of final bill, payment will be made within three weeks from the date of receipt of claim from the contractor, subjected to fulfilling the agreement conditions.

41.3 Deposits will be refunded within two weeks from the date of receipt of request from the contractor, subject to fulfilling the agreement conditions.

41.4 Payments and Certificates:

41.4.1 *Payments shall be adjusted for recovery of advance payments, liquidated damages in terms of tender conditions and security deposit for the due fulfillment of the contract. Payment will be made to the Contractor under the certificate to be issued at reasonably frequent intervals by the Engineer-in-Charge, and intermediate payment will be the sum equal to 92½% of the value of work done as so certified and balance of 7½% will be withheld and retained as security for the due fulfillment of the contractor under the certificate to be issued by the Engineer-in-Charge.*

41.4.2 Payments shall be adjusted for recovery of advance payments, liquidated damages in terms of tender conditions and security deposit for the due fulfillment of the contract. Payment will be made to the Contractor under the certificate to be issued at reasonably frequent intervals by the Engineer-in-Charge, and intermediate payment will be the sum equal to 92½% of the value of work done as so certified and balance of 7½% will be withheld and retained as security for the due fulfillment of the contractor under the certificate to be issued by the Engineer-in-Charge. On completion of the entire works the contractor will receive the final payment of all the moneys due or payable to him under or by virtue of the contract except earnest money deposit retained as security and a sum equal to 2½ percent of the total value of the work done. The amount withheld from the final bill will be retained under deposits and paid to the contractor together with the earnest money deposit retained as security after a period of 24 months as all defects shall have been made good according to the true intent and meaning thereof.

41.4.3 Defects liability period shall be taken as **TWENTY FOUR (24)** months from the date of completion of the work for building as a whole, wherein all the defects shall be rectified by the contractor at his own cost.

41.4.4 Defects of serious nature causing inconvenience such as leakage, reverse floor slopes affecting the drainage (ponding of water), warping and opening of joints in doors and window shutters etc., shall be undertaken by the contractor immediately on receipt of the complaint but not exceeding one week time, failing which the defects will be got removed at his risk and cost plus 25% as supervision and establishment charges.

41.4.5 All other defects notified to the contractor during the DLP shall be rectified to the entire satisfaction of Engineer-in-Charge or item replaced as soon as possible but not later than one month in any case. Failure to do so in a reasonable period the Engineer-in-Charge shall get it done at his cost plus 25% as supervision and establishment charges after final notice of 10 days. The decision of Engineer-in-Charge regarding a defect being of serious nature or otherwise shall be final and binding.

41.4.6 The major scope of the defect liability will be as under. However, the DLP is not limited to these items and all the works executed shall be maintained during DLP of 24 months.

S.No	Defect Liability
(i)	**All the items covered in the BOQ**

Note: The above list is illustrative for Electrical work and not exhaustive. The rectification will include all Civil, Electrical and all other works including internal and external services without any exclusion

41.4.7 *In case of over payments or wrong payment if any made to the contractor due to wrong interpretation of the provisions of the contract, APSS or Contract conditions etc., such unauthorised payment will be deducted in the subsequent bills or final bill for the work or from the bills under any other contracts with the T.T.Devasthanams / Government or at any time thereafter from the deposits available with the Government / T.T. Devasthanams.*

41.4.8 *Any recovery or recoveries advised by the Government Department either state or central, due to non-fulfillment of any contract entered into with them by the contractor shall be recovered from any bill or deposits of the contractor.*

41.4.9 *No claim shall be entertained, if the same is not represented in writing to the Engineer-in-Charge within 15 days of its occurrence.*

41.4.10 *The contractor is not eligible for any compensation for inevitable delay in handing over the site or for any other reason. In such case, suitable extensions of time will be granted after considering the merits of the case.*

41.5 ***Intermediate Payments:***

41.5.1 *For intermediate Stage of work, only part rates as fixed by the Engineer-in-Charge will be paid.*

41.5.2 *Part rates shall be worked out for the work done portion based on the actual operations involved keeping in view the value of the balance work to be done, to avoid unintended benefit to the Contractor in initial Stage.*

41.5.3 *Full rate shall be paid when the work is completed to the full profile as noted in the drawings / Specifications.*

41.5.4 *Where payment is intended for aggregates by Bill of Quantities item based on stack measurements, 10% of the quantity measured will be withheld. No payment or advance will be made for unfixed materials when the rates are for finished work in site.*

42. Interest on Money due to the Contractor:

No omission by the Executive Engineer or the sub-divisional officer to pay the amount due upon certificates shall vitiate or make void the contract, nor shall the contractor be entitled to interest upon any guarantee fund or payments in arrears, nor upon any balance which may, on the final settlement of his accounts, found to be due to him.

43. Certificate of Completion of works:

43.1 Certificate of Completion of works:

43.1.1 *When the whole of the work has been completed and has satisfactory passed any final test that may be prescribed by the Contract, the Contractor may give a notice to that effect to the Engineer-in-Charge accompanied by an undertaking to carry out any rectification work during the period of maintenance, such notice and undertaking shall be in writing and shall be deemed to be request by the Contractor for the Engineer-in-Charge to issue a Certificate of completion in respect of the Works. The Engineer-in-Charge shall, within twenty one days of the date of delivery of such notice either issue to the Contractor, a certificate of completion stating the date on which, in his opinion, the works were completed in accordance with the Contract or give instructions in writing to the Contractor specifying all the Works which, in the Engineer-in-Charge'' opinion, required to be done by the Contractor before the issue of such Certificate. The Engineer-in-Charge shall also notify the Contractor of any defects in the Works affecting completion that may appear after such instructions and before completion of the Works specified there in. The Contractor shall be entitled to receive such Certificate of the Completion within twenty one days of completion to the satisfaction of the Engineer-in-Charge of the Works so specified and making good of any defects so notified.*

43.1.2 *Similarly, the Contractor may request and the Engineer-in-Charge shall issue a Certificate of Completion in respect of:*

a) Any section of the Permanent works in respect of which a separate time for completion is provided in the Contract, and

b) Any substantial part of the Permanent Works which has been both completed to the satisfaction of the Engineer-in-Charge and occupied or used by the Department.

43.1.3 *If any part of the Permanent Works shall have been completed and shall have satisfactorily passed any final test that may be prescribed by the Contract, the Engineer-*

in-Charge may issue such certificate, and the Contractor shall be deemed to have undertaken to complete any outstanding work in that part of the Works during the period of Maintenance.

44. Taxes included in the bid:

44.1 The percentage quoted by the contractor shall be deemed to be inclusive of the taxes on all materials that the contractor will have to purchase excluding the GST for performance of this contract.

44.2 Any central or state sales and other taxes on completed item of works of this contract (other than clause 101) as may be levied and paid by the contractor are to be borne by the contractor only.

45. Price adjustment

a) Price adjustment shall not apply

46. Retention:

46.1 The department shall retain from each payment due to the contractor @ the rate of 7.5% of bill amount until completion of the whole of the Works.

46.2 On completion of the entire works the contractor will receive the final payment of all the money due or payable to him under or by virtue of the contract except retention money of a sum equal to 2½ percent of the total value of the work done. The EMD of 2.5.% and withheld amount of 2.5% from the final bill will be retained under deposits. The retained deposits, will be released after expiry of 24 months from the date of completion of work and on satisfactory performance during defect liability period.

47. Liquidated Damages:

47.1 If for any reason, which does not entitle the contractor to an extension of item, the rate of progress of works, or any section is at any time, in the opinion of the Superintending Engineer too slow to ensure completion by the prescribed time or extended time for completion Superintending Engineer shall so notify the contractor in writing and the contractor shall there upon take such steps as are necessary and the Superintending Engineer may approve to expedite progress so as to complete the works or such section by the prescribed time or extended time. The contractor shall not be entitled to any additional payment for taking such steps. If as a result of any notice given by the Superintending Engineer under this clause the contractor shall seek the Superintending Engineers permission to do any work at night or on Sundays, if locally recognized as days or rest, or their locally recognized equivalent, such permission shall not be unreasonably refused.

47.2 If the contractor fails to complete whole of the works or any part thereof or section of the works within the stipulated periods of individual mile stones (including any bonafide extensions allowed by the competent authority without levying liquidated damages), the Superintending Engineer may without prejudice to any other method of recovery will deduct one tenth of one percent of contract value per calendar day or part of the day for the period of delays subject to a maximum of 10% of the contract value not as a penalty from any monies in his hands due or which may become due to the contractor. The payment or deductions of such damages shall not relieve the contractor from his obligation to complete the works, or from any other of his obligations and liabilities under the contract.

The liquidated damages for the whole of the work are

For milestone 1	Rs.	Per day

The mile stones will be filled at the time of Agreement after obtaining a Program of the work.

47.3 The maximum amount of liquidated damages for the whole of the works is ten percent of final contract price.

48. Mobilisation Advance:

No advance whatsoever either for mobilization of machinery and materials of the execution of work will be given under any circumstances. The tender received with such conditions will be summarily rejected.

49. Securities:

The Earnest Money Deposit and Additional Security (for discount tender percentage beyond 25%) shall be provided to the Department not later than the date specified in the Letter of Acceptance and shall be issued in an amount and form and by a bank acceptable to the Department. The Earnest Money shall be valid until a date 28 days from the date of expiry of Defects Liability Period and the additional security shall be valid until a date 28 days from the date of issue of the certificate of completion.

50. Cost of Repairs:

Loss or damage to the Works or materials to the Works between the Start Date and the end of the Defects Correction Periods shall be remedied by the Contractor at the Contractor's cost if the loss or damage arises from the Contractor's acts or omissions.

E. FINISHING THE CONTRACT

51. Completion:

The Contractor shall request the Engineer-in-Charge to issue a Certificate of completion of the Works and the Engineer-in-Charge will do so upon deciding that the work is completed.

52. Taking Over:

The Department shall takes over the Site and the Works within seven days of the Engineer-in-Charge issuing a certificate of Completion.

53. Final Account:

The Contractor shall supply to the Engineer-in-Charge a detailed account of the total amount that the Contractor considers payable under the Contract before the end of the Defects Liability Period. The Engineer-in-Charge shall issue a Defects Liability Certificate and certify any final payment that is due to the Contractor within56 days of receiving the Contractor's account if it is correct and complete. If it is not, the Engineer-in-Charge shall issue within 56 days a schedule that states the scope of the corrections or additions that are necessary. If the final Account is still unsatisfactory after it has been resubmitted, the Engineer-in-Charge shall decide on the amount payable to the Contractor and issue a payment certificate within 56 days of receiving the Contractor's revised account.

54. Termination:

54.1 The Department may terminate the Contract if the contractor causes a fundamental breach of the Contract.

54.2 Fundamental breaches of Contract include, but shall not be limited to the following.

a) The Contractor stops work for 28 days when no stoppage of work is shown on the current program and the stoppage has not been authorised by the Engineer-in-Charge.

b) The Contractor is made bankrupt or goes into liquidation other than for a reconstruction or amalgamation.

c) The Engineer-in-Charge gives Notice that failure to correct a particular Defect is a fundamental breach of Contract and the Contractor fails to correct it within a reasonable period of time determined by the Engineer-in-Charge; and

d) The Contractor does not maintain a security which is required and

e) The Contractor has delayed the completion of works by the number of days for which the maximum amount of liquidated damages can be paid as defined.

f) If the contractor, in the judgment of the Department has engaged in corrupt or fraudulent practices in competing for or in the executing the contract.

For the purpose of this paragraph: "corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution. "Fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment the Government and includes collusive practice among Tenderers (prior to or after Tender submission) designed to establish Tender prices at artificial non-competitive levels and to deprive the Government of the benefits of free and open competition.

54.3 Notwithstanding the above the Department may terminate the contract for convenience.

54.4 If the Contract is terminated, the Contractor shall stop work immediately, make the Site safe and secured leave the Site as soon as reasonably possible.

55. **Property:**

All materials on the Site, Plant, Equipment, Temporary Works and Works are deemed to be the property of the Department if the Contract is terminated because of Contractor's default.

56. *Release form performance:*

If the Contract is frustrated by the outbreak of war or by any other event entirely outside the control of either the Department or the Contractor, then the Engineer-in-Charge shall certify that the contract has been frustrated. The Contractor shall make the site safe and stop work as quickly as possible after receiving this certificate and shall be paid for all works carried out before receiving it and for any work carried out after wards to which commitment was made.

57. Payment upon Termination:

If the Contract is terminated because of a fundamental breach of Contract by the Contractor, the Engineer-in-Charge shall issue a certificate for the value of the work done less advance payments received upon the date of the issue of the certificate, less other recoveries due in terms of the Contract, less taxes due to be deducted at source as per applicable law and less the percentage to apply to the work not completed. <u>Additional Liquidated Damages shall not apply</u>. If the total amount due to the Department exceeds any payment due to the Contractor the difference shall be a debt payable to the Department.

58. Property:

All materials on the Site, Plant, Equipment, Temporary Works and Works are deemed to be the property of the Department if the Contract is terminated because of Contractor's default.

59. Release from Performance:

If the Contract is frustrated by the outbreak of war or by any other event entirely outside the control of either the Department or the Contractor the Engineer-in-Charge shall certify that the contract has been frustrated. The Contractor shall make the site safe and

stop work as quickly as possible after receiving this certificate and shall be paid for all works carried out before receiving it and for any work carried out after wards to which commitment was made.

F. SPECIAL CONDITIONS

58 Water Supply:

58.1 It is the responsibility of the Contractor to make his own arrangements for water supply for the work and labour, at his own cost. The Department will not take any responsibility to arrange for water at work site. However In case the department supply is available at nearby point, the contractor will be permitted to draw water from this point subject to availability and the contractor has to make necessary arrangements for drawl of water by providing pipe line and installing a pump set form the source at his cost and the contractor has to pay the charges at 0.25% of the grass value of the works, which will be deducted from the running bills on pro-rata basis.

58.2 The water used for the construction shall be complied with, as per the relevant standards. The rates quoted by the contractor are deemed to be inclusive of all the above costs and operations and no compensation on this account will be allowed at later date.

59 Electrical Power:

59.1 *The power for the construction equipment, lighting and other purposes shall be obtained directly from the APSPDCL, entering into a separate agreement with them, as per the conditions and the rates of supply obtained with the Board. The contractor will have to make his own arrangements to lay and maintain the necessary L.T. distribution lines and wiring for the works at his cost. The metering will be at a single point of initial L.T. supply. The department is not responsible for any sort of power failures and power breakdown etc., and no compensation of any kind will be paid by the department on account of failures or breakdowns in supply of power.*

a. The materials supplied shall confirm to make and specifications as mentioned in the Schedule.

b. Installations generally shall be carried out in conformity with Indian standard code or practice for electrical wiring installations L.S. 732-1963 and 2274.

c. The contractor should possess license issued by the Secretary, Licensing Board, Government of A.P.S.E.B. to execute such type of works and he should mention the license number at the time of the tendering.

d. The list of specifications for all electrical materials is enclosed for execution.

e. In case of failure of electricity, the Contractor has to make alternative arrangements for supply of electricity by Diesel Generator sets of suitable capacity at place of work.

f. In case, sufficient capacity of power is available with the TTD at near-by TTD lines, the contractor may be permitted to draw power from this point on payment basis. But the contractor has to lay all the lines/transformers/other appliances required from this point.

g. The contractor will pay the bills of Electricity Board for the cost of power consumed by him.

h. The contractor shall satisfy all the conditions and rules required as per Indian Electricity Act 1910 and under rule –45(I) of the Indian Electricity Rules, 1956 as amended from time to time and other pertinent rules.

i. The power shall be used for bonafide Departmental works only.

j. The rate quoted by the contractor is deemed to be inclusive of all the above and no compensation on this account will be allowed at later date.

k. The department is not responsible for any sort of power failures and power break down etc., and no compensation of any kind will be paid by the department on account of such failures and no extension of time will be granted under such reasons.

59.2 Electric Power for Domestic Supply:

The contractor will have to make his own arrangements to lay and maintain the necessary distribution lines and wiring for the camp at his own cost. The layout and the methods of laying the lines and wiring shall have the prior approval of the Engineer-in-Charge. All camp area shall be properly electrified. All lines, streets, approaches for the camp etc., shall be sufficiently lighted for the safety of staff and labour of the contractor, at the cost of the Contractor and it will be subject to the approval of the Engineer-in-Charge.

60 Land:

60.1 Land for Contractor's use:

The contractor will be permitted to use T.T.Devasthanams / Government land for execution of work. The contractor shall have to make his own arrangements for acquiring and clearing the site, leveling, providing drainage and other facilities for labour staff colonies, site office, work-shop or stores and for related activities. The Contractor shall apply to the Department within a reasonable time after the award of the contract and at least 30 days in advance of its use, the details of land required by him for the work at site and the land required for his camp and should any private land which has not been acquired, be required by the contractor for his use. The same may be acquired by the contractor at his own cost by private negotiations and no claim shall be admissible to him on this account.

The Engineer-in-Charge reserves the right to refuse permission for use of any government land for which no claim or compensation shall be admissible to the contractor. The contractor shall, however, not be required to pay cost or any rent for the T.T.Devasthanams / Government land given to him.

60.2 Surrender of Occupied Land:

a) The T.T.Devasthanams / Government land as here in before mentioned shall be surrendered to the Engineer-in-Charge within seven days, after issue of completion certificate. Also no land shall be held by the contractor longer than the Engineer-in-Charge shall deem necessary and the contractor shall on the receipt of due notice from the Engineer-in-Charge, vacate and surrender the land which the Engineer-in-Charge may certify as no longer required by the Contractor for the purpose of the work.

b) The contractor shall make good to the satisfaction of the Engineer-in-Charge any damage to areas, which he has to return or to other property or land handed over to him for purpose of this work. Temporary structures may be erected by the contractor for storage sheds, offices, residences etc., for non-commercial use, with the permission of the Executive Engineer on the land handed over to him at his own cost. At the completion of the work these structures shall be dismantled site cleared and handed over to the Executive Engineer. The land required for providing amenities will be given free of cost from Government lands if available otherwise the contractor shall have to make his own arrangements.

60.3 *Contractor not to dispose off Spoil etc.: -*

The contractor shall not dispose off or remove except for the purpose of fulfillment of this contract, sand, stone, clay ballast, earth, trees and shrubs or other materials obtained in the excavation made or lying on the site of the work, and all such materials and produce shall remain property of the T.T.Devasthanams / Government. The Department may upon request from the contractor, or if so stipulated in the conditions of the contract allow the contractor to use any of the above materials for the works either free of cost or after payment as may be specifically mentioned or considered necessary during the execution of the work

61 Roads:

In addition to existing public roads and roads Constructed by T.T.Devasthanams / Government, if any, in work area all additional approach roads inside work area and camp required by the Contractor shall be constructed and maintained by him at his own cost. The layout design, construction and maintenance etc. of the roads shall be subject to the approval of the Engineer-in-Charge. The contractor shall permit the use of these roads by the T.T.Devasthanams / Government free of charge.

It is possible that work at, or in the vicinity of the work site will be performed by the T.T.Devasthanams / Government or by other contractors engaged in work for the Government during the contract period. The contractor shall without charge permit the government and such other contractor and other workmen to use the access facilities including roads and other facilities, constructed and acquired by the contractor for use in the performance of the works.

The contractor's heavy construction traffic or tracked equipment shall not traverse any public roads or bridges unless the contractor has made arrangement with the authority concerned. In case contractor's heavy construction traffic or tracked equipment is not allowed to traverse any public roads or bridges and the contractor is required to make some alternative arrangements, no claim on this account shall be entertained.

The contractor is cautioned to take necessary precautions in transportation of construction materials to avoid accidents.

62 Payment for Camp Construction:

No payment will be made to the contractor for construction, operation and maintenance of camp and other camp facilities and the entire cost of such work shall be deemed to have been included in the tendered rate for the various items of work in the schedule of quantities and bids.

63 Explosive And Fuel Storage Tanks:

No explosive shall be stored within ½ (half) KM of the limit of the camp sites. The storage of gasoline and other fuel oils or of Butane, Propane and other liquified petroleum gases, shall confirm to the regulations of Andhra Pradesh State Government and Government of India. The tanks, above ground and having capacity in excess of 2000 liters, shall not be located within the camp area, nor within 200m, of any building.

64 Labour:

The contractor shall, make his own arrangements for the engagement of all staff and labour, local or other, and for their payment, housing, feeding and transport.

Labour importation and amenities to labour and contractor's staff shall be to the contractor's account. His quoted percentage shall include the expenditure towards importation of labour amenities to labour and staff;

The contractor shall, if required by the Engineer-in-Charge, deliver to the Engineer-in-Charge a written in detail, is such form and at such intervals as the Engineer-in-Charge

may prescribe, showing the staff and the numbers of the several classes of labour from time to time employed by the contractor on the Site and such information respecting Contractor's Equipment as the Engineer-in-Charge may require.

Transportation of Labour:

The contractor shall make his own arrangement for the daily transportation of the labour and staff from labour camps colonies to the work spot and no labour or staff of the contractor shall stay at the work spot. No extra payment will be made to the contractor for the above transportation of the labour and his quoted percentage to the work shall include the transportation charges of labour from colonies to work spot and back.

The contractor will at all times duly observe the provisions of employment of children Act XXVI of 1938 and any enactment or modification of the same and will not employ or permit any person to do any work for the purpose under the provisions of this agreement in contravention of said Act. The contractor here by agrees to indemnify the department from and against all claims, penalties which may be suffered by the department or any person employed by the department by any default on the part of the contractor in the observance and performance of the provisions of the employment of children Act. XXVI of 1938 or any enactment or modification of the same.

65 Safety Measures:

1. *The contractor shall take necessary precautions for safety of the workers and preserving their health while working in such jobs, which require special protection and precautions. The following are some of the measures listed but they are not exhaustive and contractor shall add to and augment these precautions on his own initiative where necessary and shall comply with directions issued by the Executive Engineer or on his behalf from time to time and at all times.*

2. *Providing protective foot wear to workers situations like mixing and placing of mortar or concrete sand in quarries and places where the work is done under much wet conditions.*

3. *Providing protective head gear to workers at places like underground excavations to protect them against rock falls.*

4. *Providing masks to workers at granulates or at other locations where too much fine dust is floating about and sprinkling water at frequent intervals by water hoses on all stone crushing area and storage bins abate to dust.*

5. *Getting the workers in such jobs periodically examined for chest trouble due to too much breathing in to fine dust.*

6. *Taking such normal precautions like fencing and lightening in excavation of trenches, not allowing rolls and metal parts of useless timber spread around, making danger areas for blasting providing whistles etc.*

7. *Supply work men with proper belts, ropes etc., when working in precarious slopes etc.*
8. *Avoiding named electrical wire etc., as they would electrocute the works.*

9. *Taking necessary steps towards training the workers concerned on the machinery before they are allowed to handle them independently and taking all necessary precautions in around the areas where machines hoists and similar units are working.*

66 Fair Wage Clause:

1. *The contractor shall pay not less than fair wages to laborers engaged by him on the work.*

2. *"Fair" wages means wages whether for time of piecework notified by the Government from time in the area in which the work is situated.*

3. *The contractor shall not with-standing the revisions of any contract to the contrary cause to be paid to the labour, in directly engaged on the work including any labour engaged by the sub-contractor in connection with the said work, as if the labourers had been directly employed by him.*

4. *In respect of labour directly or indirectly employed in the works for the purpose of the contractors part of the agreement the contractor shall comply with the rules and regulations on the maintenance of suitable records prescribed for this purpose from time to time by the Government. He shall maintain his accounts and vouchers on the payment of wages to the labourers to the satisfaction of the Executive Engineer.*

5. *The Executive Engineer shall have the right to call for such record as required to satisfy himself on the payment of fair wages to the labourers and shall have the right to deduct from the contract amount a suitable amount for making good the loss suffered by the worker or workers by reason of the "fair wages" clause to the workers.*

6. *The contractor shall be primarily liable for all payments to be made and for the observance of the regulations framed by the Govt. from time to time without prejudice to his right to claim indemnity from his sub-contractors.*

7. *As per contract labour (Regulation and abolition) Act. 1970 the contractor has to produce the license obtained from the licensing officers of the labour department along with the tender or at the time of agreement.*

8. *Any violation of the conditions above shall be deemed to be a breach of his contract.*

9. *Equal wages are to be paid for both men and women if the nature of work is same and similar.*

10. *The contractor shall arrange for the recruitment of skilled and unskilled labour local and imported to the extent necessary to complete the work within the agreed period as directed by the Executive Engineer in writing.*

67 Indemnity Bond:

Name of work: "Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala**".**

I _____ Resident of _____, do hereby bind myself to pay all the claims may come (a) under Workmen's Compensation Act. 1933 with any statutory modification thereof and rules there under or otherwise for or in respect of any damage or compensation payable in connection with any accident or injury sustained (b) under Minimum wages Act 1948 (c) under payment of wages Act.1936 (d) under the Contractor labour (Regulation and Abolition) Act. 1970 by workmen engaged for the performance of the business relating to the above contract i.e. failing such payment of claims of workmen engaged in the above work, I abide in accepting for the recovery of such claims, effected from any of my assets with the departments.

68 Compliance With Labour Regulations:

During continuance of the contract, the contractor and his sub-contractors shall abide at all times by all existing labour enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labour law (including rules), regulations, bye laws that may be passed or

notifications that may be issued under any labour law in future either by the State or the Central Government or the local authority and also applicable labour regulations, health and sanitary arrangements for workmen, and other benefits. Salient features of some of the major labour laws that are applicable to construction industry are given below. The contractor shall keep the Department indemnified in case any action is taken against Department by the competent authority on account of contravention of any of the provisions of any Act or rules made thereunder, regulations or notifications including amendments. If the Department is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provision stipulated in the notifications/bye laws/Acts/Rules/regulations including amendments, if any, on the part of the contractor, the Engineer-in-charge /Department shall have the right to deduct any money due to the contractor including his amount of performance security. The Department/Engineer-in-Charge shall also have right to recover from the contractor any sum required or estimated to be required for making good the loss or damage suffered by the Department.

The employees of the Contractor and the Sub-contractor in no case shall be treated as the Department of the Department at any point of time.

69 Salient features of some major labour laws applicable to establishment engaged in buildings and other construction work:

(a) Workmen compensation Act 1923: The Act provides for compensation in case if injury by accident arising out of and during the course of employment.

(b) Payment of Gratuity Act 1972: Gratuity is payable to an employee under the Act on satisfaction of certain conditions on separation if any employee has completed 5 years' service or more, or on death, the rate of 15 days wages for every completed year of service. The Act is applicable to all establishments, employing 10 or more employees.

(c) Employees P.F. and Miscellaneous provision Act 1952: The Act provides for monthly contributions by the Department plus workers @ 10% or 8.33%. The benefits payable under the Act are:

(i) Pension or family pension on retirement or death, as the case may be.

(ii) Payment of P.F. accumulation on retirement/death etc.,

(d) Maternity Benefit Act 1951: The Act provides for leave and some other benefits to women employees in case of confinements or miscarriage etc.

(e) Contract Labour (Regulation & Abolition) Act 1970: The Act provides for certain welfare measures to be provided by the contractor to contract labour and in case the Contractor fails to provide, the same are required to be provided by the Principal Department by Law. The Principal Department is required to take certificate of Registration and the contractor is required to take license from the designated Officer. The Act is applicable to the establishments or Contractor of Principal Department if they employ 20 or more contract labour.

(f) Minimum wages Act 1948: The Department is supposed to pay not less than the Minimum wages fixed by appropriate Government as per provisions of the Act if the employment is a scheduled employment construction of Buildings, Roads, Runways are scheduled employments.

(g) Payment of wages Act 1936: It lays down as to by what date the wages are to be paid, when it will be paid and what deductions can be made from the wages of the workers.

(h) *Equal Remuneration Act 1979: The Act provides for payment of equal wages for work of equal nature to Male or Female workers and for not making discrimination against Female employee in the matters of transfers, training and promotions etc.*

i) *Payment of Bonus Act 1965: The Act is applicable to all establishments employing 20 or more employees. The Act provides for payment of annual bonus subject to a minimum of 8.33% of wages and maximum of 20% of wages to employees drawing Rs. 3500/- per month or less. The bonus to be paid to employees getting Rs.2500/- per months or above and upto Rs.3500/- per month shall be worked out by taking wages as Rs.2500/- per monthly only. The Act does not apply to certain establishments. The newly set-up establishments are exempted for five years in certain circumstances. Some of the State Governments have reduced the employment size from 20 to 10 for the purpose of applicability of this Act.*

(j) *Industrial Disputes Act 1947: The Act lays down the machinery and procedure for resolution of Industrial disputes, in what situations a strike or lock- out becomes illegal and what are the requirements for laying off or retrenching the employees or closing down the establishment.*

(k) *Industrial Employment (Standing Orders) Act 1946: It is applicable to all establishments employing 100 or more workmen (employment size reduced by some of the State and Central Government to 50). The Act provides for laying down rules governing the conditions of employment by the Department on matters provided in the Act and get the same certified by the designated Authority.*

(l) *Trade Unions Act 1926: The Act lays down the procedure for registration of trade unions of workmen and Departments. The Trade Unions registered under the act have been given certain immunities from civil and criminal liabilities.*

(m) *Child Labour (Prohibition & Regulation) Act 1986: The Act prohibits employment of children below 14 years of age in certain occupations and processes and provides for regulation of employment of children in all other occupations and processes, Employment Child Labour is prohibited in Building and Construction Industry.*

(n) *Inter-State Migrant workmen's (Regulation of Employment & Conditions of service) Act 1979: The Act applicable to an establishment, which employs 5 or more inter-state migrant workmen through an intermediary (who has recruited workmen in one state for employment in the establishment situated in another State). The inter State migrant workmen, in an establishment to which this Act becomes applicable, are required to be provided certain facilities such as housing, medical aid, traveling expenses from home upto the establishment and back, etc.*

(o) *The Building and Other Construction workers (regulation of Employment and conditions of service) Act 1996 and the Cess Act of 1996: All the establishments who carryon any building or other construction work and employs 10 or more workers are covered under this Act. All such establishments are required to pay cess at the rate not exceeding 2% of the cost of construction as may be modified by the Government. The Department of the establishment is required to provide safety measures at the Building or construction work and other welfare measures, such as Canteens, First-aid facilities, Ambulance, Housing accommodations for workers near the work place etc. The Department to whom the Act applies has to obtain a registration certificate from the Registering Officer appointed by the Government.*

(p) *Factories Act 1948: The Act lays down the procedure for approval of plans before setting up a factory, health and safety provisions, welfare provisions, working hours, annual earned leave and rendering information regarding accidents or dangerous occurrences to designated authorities. It is applicable to premises employing 10 person*

or more with aid of power or 20 or more persons without the aid of power engaged in manufacturing process.

70 Liabilities of the Contractor:

70.1 *Accident Relief and workmen compensation:*

The contractor should make all necessary arrangements for the safety of workmen on the occurrence of the accident, which results in the injury or death of any of the workmen employed by the contractor, the contractor shall within 24 hours of the happenings of the accident and such accidents should intimate in writing to the concerned Asst. Engineer / Asst. Executive Engineer of the Department the act of such accident. The contractor shall indemnify Government against all loss or damage sustained by the Government resulting directly or indirectly from his failure to give intimation in the manner aforesaid including the penalties or fines if any payable by Govt. as a consequence of Govt. failure to give notice under workmen's compensation Act or otherwise conform to the provisions of the said Act. In regard to such accident.

70.2 *In the event of an accident in respect of which compensation may become payable under the workmen's compensation Act VIII 23 whether by the contractor, by the Government it shall be lawful for the Executive Engineer to retain such sum of money which may in the opinion of the Executive Engineer be sufficient to meet such liability. The opinion of the Executive Engineer shall be final in regard to all matters arising under this clause.*

70.3 *The contractor shall at all times indemnify the T.T.D. against all claims which may be made under the workmen's compensation act or any statutory modification thereafter or rules there under or otherwise consequent of any damage or compensation payable in consequent of any accident or injuries sustained or death of any workmen engaged in the performance of the business relating to the contractor.*

71 Contractor's Staff, Representatives and Labour:

(a) The contractor shall, at all times, maintain on the works, staff of qualified Engineers, and Supervisors of sufficient experience of similar other jobs to assure that the quality of work turned out shall be as intended in the specifications. The contractor shall also maintain at the works, a Work Manager or sufficient status, experience and office and duly authorise him to deal with all aspects of the day-today work. All communications to any commitments by the Work Manager shall be considered as binding on the Contractor.

(b) The Contractor shall at all times submit details of skilled and unskilled labour and equipment employed to the Engineer-in-Charge in prescribed pro-forma as he may require to assess and ensure the proper progress of work.

(c) For the work costing more than 10.00 Lakhs, if the contractor does not employ the technical person agreed to on the work a fine of Rs. 25, 000/- will be imposed. If he does not employ for 30 days, thereafter it becomes a fundamental breach of contract.

(d) For the work costing less than 10.00 Lakhs the Executive Engineer has to impose a suitable fine of Rs. 5,000/- for non-employment of technical person. If he does not employ for 30 days, thereafter it becomes a fundamental breach of contract.

72 Accommodation and food:

The contractor should arrange accommodation he needs, at his own cost. The contractor shall make his own arrangements for supply of food grains, fuel and other provision to his staff and labourers including controlled commodities.

73 Relationship:

Contractor shall have to furnish information along with tender, about the relationship he is having with any officer of the Department, Government of Andhra Pradesh of the rank Assistant Engineer and above engaged in the work and any officer of the rank of Assistant Secretary and above of the Department of Government of Andhra Pradesh.

74 Protection of adjoining premises:

The contractor shall protect adjoining sites against structural, decorative and other damages that could be caused by the execution of these works and make good at his cost any such damages.

75 Work during night or on Sundays and holidays:

The works can be allowed to be carried out during night, Sundays or authorised holidays in order to enable him to meet the schedule targets and the work shall require almost round the clock working keeping in view:

(i) The provisions of relevant labour laws being adhered to

(ii) Adequate lighting, supervision and safety measures are established to the satisfaction of the Engineer-in-Charge and

(iii) The construction programme given by the Contractor and agreed upon by the Engineer-in-Charge envisages such night working or working during Sundays or authorised holidays.

76 Layout of materials stacks:

The contractor shall deposit materials for the purpose of the work on such parts only of the ground as may be approved by the Engineer-in-Charge before starting work. A detailed survey, clearly indicating position and areas where materials shall be stacked and sheds built is to be conducted by the contractor at his own cost and only after obtaining necessary approval of the plan for use of sites by the Engineer-in-Charge, the Contractor can use the sites accordingly.

77 Use of blasting materials:

Procurement of blasting materials and its storage is the responsibility of the contractor. The contractor shall engage licensed blaster for blasting operation. The contractor is to act in accordance with Indian Explosive Act and other rules prevailing, during the execution of work. It is the responsibility of the contractor to see, that works by other agencies in the vicinity are not hampered, in such cases if any claim is made by other agencies that should be borne by the contractor. Carriage of blasting materials, from the magazine to the work site, is the responsibility of the contractor.

78 Plant and Equipment:

78.1 *The contractor shall have sufficient plant, equipment and labour and shall work such hours and shifts as may be necessary to maintain the progress on the work as per the approval progress schedule. The working and shifts hours shall comply with the Govt. Regulations in force.*

78.2 *It is to expressly and clearly understand that contractor shall make his own arrangements to equip himself with all machinery and special tools and plant for the speedy and proper execution of the work and the department does not undertake responsibility towards their supply.*

78.3 *The department shall supply such of the machinery that may be available on hire basis but their supply cannot be demanded as matter of right and no delay in progress can be attributed to such non-supply of the plant by the department and the department cannot*

be made liable for any damage to the contractor. The Contractor shall be responsible for safe custody of the departmental machinery supplied to him (which will be delivered to contractor at the machinery yard at site of work) and he has to make good all damages and losses if any other than fire, wear and tear to bring it to the conditions that existed at the time of issue to the contractor before handing over the same to the department. The hire charges for the machinery handed over to the contractor will be recovered at the rate prevalent at the time of supply. The contractor will have to execute supplemental agreement with Executive Engineer at the time of supply of the machinery.

78.4 *The acceptance of departmental machinery on hire is optional to the contractor.*

79 Inconvenience to public:

The contractor shall not deposit materials at any site, which will cause inconvenience to public. The Engineer-in-Charge may direct the contractor to remove such materials or may undertake the job at the cost of the contractor.

80 Conflict of interest:

Any bribe, commission, gift or advantage given, promised or offered by on behalf of contractor or his partner, agent or servant or any one on his behalf to any officer, servant, representatives, agents of Engineer-in-Charge, or any persons on their behalf, in relation to the obtaining or to execution of this, or any other contract with Engineer-in-Charge shall in addition to any criminal liability, which it may occur, subject to the cancellation of this or all other contracts and also to payment of any loss or damage resulting from any such cancellation. Engineer-in-Charge shall then be entitled to deduct the amount, so payable from any money, otherwise due to the contractor under this or any other contract.

81 Contract documents and materials to be treated as confidential:

All documents, correspondences, decisions and orders, concerning the contract shall be considered as confidential and/or restricted in nature by the contractor and he shall not divulge or allow access to them by any unauthorised person.

82 General obligations of Contractor:

82.1 *The contractor shall, subject to the provision of the contract and with due care and diligence, execute and maintain the works in accordance with specifications and drawings.*

82.2 *The contractor shall promptly inform the Department and the Engineer-in-Charge of any error, omission, fault and to erh defect in the design of or specifications for the works which are discovered when reviewing the contract documents or in the process of execution of the works.*

82.3 *If Contractor believes that a decision taken by the Engineer-in-Charge was either outside the authority given to the Engineer-in-Charge by the Contract or that the decision was wrongly taken, the decision shall be referred to the technical expert within 14 days of the notification of the Engineer-in-Charge's decisions.*

82.4 *Pending finalisation of disputes, the contractor shall proceed with execution of work with all due diligence.*

83 Security measures:

A) *Security requirements for the work shall be in accordance with the Government's general requirements including provisions of this clause and the Contractor shall conform to such requirements and shall be held responsible for the actions of all his staff, employees and the staff and employees of his sub-contractors.*

b) All contractors' employees, representatives and sub-contractor's employees shall wear identifications badges provided by the contractor. Badges shall identify the contractor, showing and employee's number and shall be worn at all times while at the site. Individual labour will not be required to wear identification badges.

c) All vehicles used by the contractor shall be clearly marked with contractor's name.

d) The contractor shall be responsible for the security of the works for the duration of the contract and shall provide and maintain continuously adequate security personnel to fulfill these obligations. The requirements of security measures shall include, but not limited to maintenance of order on the site, provision of all lighting, fencing, guard flagmen and all other measures necessary for the protection of the works within the colonies, camps and elsewhere on the site, all materials delivered to the site, all persons employed in connection with the works continuously throughout working and non-working period including nights, Sundays and holidays for duration of the contract.

e) Other contractors working on the site concurrently with the contractor will provide security for their own plant and materials. However, their security provisions shall in no way relieve the contractor of his responsibilities in this respect

f) Separate payment will not be made for provision of security services.

84 Firefighting measures:

a) The contractor shall provide and maintain adequate firefighting equipment and take adequate fire precaution measures for the safety of all personnel and temporary and permanent works and shall take action to prevent damage to destruction by fire of trees shrubs and grasses.

b) Separate payment will not be made for the provision of fire prevention measures.

85 Sanitation:

The contractor shall implement the sanitary and watch and ward rules and regulations for all forces employed under this contract and if the Contractor fails to enforce these rules, the Engineer-in-Charge may enforce them at the expenses of the Contractor.

86 Training of personnel:

The contractor, shall, if and as directed by the Engineer-in-Charge provide free of any charge adequate facilities, for vocational training of Government Officers, students, Engineers, supervisors, foremen, skilled workmen etc. not exceeding six in number at any one time on the contractor's work. Their salaries, allowances etc. will be borne by the Government and the training schemes will be drawn up by the Engineer-in-Charge in consultation with the contractor.

87 Ecological balance:

a) The contractor shall maintain ecological balance by preventing de-forestation, water pollution and defacing of natural landscape. The contractor shall so conduct his construction operation as to prevent any unnecessary destruction, scarring, or defacing of the natural surroundings in the vicinity of the work. In respect of the ecological balance, Contractor shall observe the following instructions.

i) Where unnecessary destruction, scarring, damage or defacing may occur, as result of the operation, the same shall be repaired replanted or otherwise corrected at the contractor's expense. The contractor shall adopt precautions when using explosives, which will prevent scattering of rocks or other debris outside the work area. All work area including borrow areas shall be smoothened

and graded in a manner to conform to the natural appearances of the landscape as directed by the Engineer-in-Charge.

ii) All trees and shrubbery which are not specifically required to be cleared or removed for construction purposes shall be preserved and shall be protected from any damage that may be caused by the contractor's construction operation and equipment. The removal of trees and shrubs will be permitted only after prior approval by the Engineer-in-Charge. Special care shall be exercised where trees or shrubs are exposed to injuries by construction equipment, blasting, excavating, dumping, chemical damage or other operation and the contractor shall adequately protect such trees by use of protective barriers or other methods approval by the Engineer-in-Charge. Trees shall not be used for anchorages. The contractor shall be responsible for injuries to trees and shrubs caused by his operations. The term "injury" shall include, without limitation bruising, scarring, tearing and breaking of roots, trunks or branches. All injured trees and shrubs be restored as nearly as practicable without delay to their original condition at the contractor's expense.

(iii) The contractor's construction activities shall be performed by methods that will present entrance or accidental spillage of solid matter contaminants, debris and other objectionable pollutants and wastage into river. Such pollutant and waste include earth and earth products, garbage, cement concrete, sewage effluent, industrial wastes, radio-active substances, mercury, oil and other petroleum products, aggregate processing, mineral salts and thermal pollution. Pollutants and wastes shall be disposed off in a manner and at sites approved by the Engineer-in-Charge.

(iv) In conduct of construction activities and operation of equipment's the contractor shall utilise such practicable methods and devices as are reasonably available to control, prevent and otherwise minimise the air pollution. The excessive omission of dust in to the atmosphere will not be permitted during the manufacture, handling and storage of concrete aggregates and the contractor shall use such methods and equipment as a necessary for collection and disposal or prevention of dust during these operation. The contractor's methods of storing and handling cement shall also include means of eliminating atmospheric discharges of dust, equipment and vehicles that give objectionable omission of exhaust gases shall not be operated. Burning of materials resulting from clearing of trees, bushes, combustible construction materials and rubbish may be permitted only when atmospheric conditions for burning are considered favourable.

b) Separate payment will not be made for complying with the provisions of this clause and all cost shall be deemed to have been included in the unit rates and prices included in the contract if any provision is not complied with within a reasonable time even after issue of a notice in this respect, the necessary operations would be carried out by the Engineer-in-Charge at the cost of the Contractor, Orders of the Engineer-in-Charge in this respect would be final and binding on the contractor.

88 Preservation of existing vegetation:

a) The contractor will preserve and protect all existing vegetation such as trees, on or adjacent to the site which do not unreasonably interfere with the construction as may be determined by the Engineer-in-Charge. The contractor will be held responsible for all unauthorised cutting or damage of trees, including damage due to careless operation of equipment, stockpiling of materials or trecking of grass areas by equipment. Care shall be taken by the Contractor in felling trees authorised for removal to avoid any unnecessary damages to vegetation and trees that are to remain in place and to structures under construction or in existence and to workmen.

b) *All the produce from such cutting of trees by the contractor shall remain the property of Government and shall be properly stacked at site, approved by the Engineer-in-Charge. No payment whatsoever, shall be made for such cutting and its stacking by the Contractor. If any produce from such cutting is not handed over to the Government by the contractor, he shall be charged for the same at the rates to be decided by the Engineer-in-Charge. The recovery of this amount shall be made in full from the intermediate bill that follows.*

c) *The contractor shall also make arrangements of fuel deposits for supply of required fuel for the labourers to be employed for cooking purpose at his own cost in order to prevent destruction of vegetation growth in the surrounding area of the work site.*

90 Possession prior to completion:

The Engineer-in-charge shall have the right to take possession of or use any completed part of work or works or any part thereof under construction either temporarily or permanently. Such possession or use shall not be deemed as an acceptance of any work either completed or not completed in accordance with the contract with in the interest of Clause 28 of APSS except where expressly otherwise specified by the Engineer-in-charge.

91 Payment upon termination:

If the contract is terminated because of a fundamental breach of contract by the contractor, the Engineer-in-Charge shall issue a certificate for the value of the work done less advance payment received upon the date of the issue of the certificate and less the percentage to apply to the work not completed as indicated in the contract data. Additional liquidated damages shall not apply. If the total amount due to the department exceeds any payment due to the contractor the difference shall be a debt payable to the Department. In case of default for payment within 28 days from the date of issue of notice to the above effect, the contractor shall be liable to pay interest at 12% per annum for the period of delay.

92 Access to the contractor's books:

Whenever it is considered necessary by the Engineer-in-Charge to ascertain the actual cost of execution of any particular extra item of work or supply of the plant or material on which advance is to be made or of extra items or claims, he shall direct the contractor to produce the relevant documents such as payrolls, records of personnel, invoices of materials and any or all data relevant to the item or necessary to determine its cost etc. and the contractor shall when so required furnish all information pertaining to the aforesaid items in the mode and manner that may be specified by the Engineer-in-Charge.

93 Drawing to be kept at site:

One copy of the drawings furnished to the contractor shall be kept by the contractor on the site and the same shall at all reasonable time be available for inspection and use by the Engineer-in-Charge and the Engineer-in-Charge's representative and by any other persons authorised by the Engineer-in-Charge in writing.

94 B.I.S. [I.S.I.] books and APSS to be kept at site:

A complete set of Indian Standard specification referred to in "Technical Specifications" and A.P.S.S. shall be kept at site for reference.

95 Site Order Book:

An order book shall be kept at the site of the work. As far as possible, all orders regarding the work are to be entered in this book. All entries shall be signed and dated by the Department Officer in direct charge of the work and by the contractor or by his representative. In important cases, the Executive Engineer or the Superintending

Engineer will countersign the entries, which have been made. The order book shall not be removed from the work, except with the written permission of the Executive Engineer.

96 Variations by way of modification, omissions or additions:

For all modifications, omissions from or additions to the drawings and specifications, the Executive Engineer will issue revised plans, or written instructions, or both and no modification, omission or addition shall be made unless so authorized and directed by the Executive Engineer in writing. The Executive Engineer shall have the privilege of ordering modifications, omission or additions at any time before the completion of the work and such orders shall not operate to annual those portions of the specifications with which said changes do not conflict.

Engineer-in-Charge's Decision:
It shall be accepted as in separable part of the contract that in matters regarding materials, workmanship, removal of improper work, interpretation of the contract drawings and contract specification, mode of the procedure and the carrying out o the work, the decision of the Engineer-in-Charge, which shall be given in writing, shall be binding on the contractor.

97 Care and diversion of river/stream:

The contractor shall submit details regarding the diversion and care of river or stream during construction of the work along with a separate print-out of the time table showing earliest and latest start and finish dates of various activities. He should submit a detailed layout plan with drawings for the diversion and care of river during construction of work. The above arrangements shall be at contractor's cost.

98 Income tax:

a) During the currency of the contract deduction of income tax at 2.00% + Surcharge as in force shall be made from the gross value of each bill of the contract, the contract value of which is in excess of Rs.20, 000/- for deduction of tax at rates lower than 2.00% procedure stipulated under section 194-C(4) of Income Tax Act, 1961 shall be followed.

b) Income Tax clearance certificate should be furnished before the payment of final bill. Otherwise final payment will be withheld.

c) The contractor's staff, personnel and labour will be liable to pay personnel income taxes in respect of their salaries and wages as are chargeable under the laws and regulations for the time being in force, and the contractor shall perform such duties in regard to such deductions thereof as may be imposed on him by such laws and regulations.

99 Deleted:

100 GST

100.1 The Contractor shall comply to the provisions of GST and related charging mechanism procedures of GST Act.

100.2 The Contractor has to mention the GST number of TTD in the tax invoice to be issued to TTD. After that the same has to be uploaded properly in the monthly / Quarterly returns to be filed by the Contractor If the said amount is not recorded in the GST 2A, TTD shall recover the amounts from the Contractor from time to time.

100.3 The rates included in BOQ (Schedule-A) are exclusive of GST.

100.4 The percentage quoted by the contractor is exclusive of Goods and Service Tax (GST) but inclusive of all other taxes on all materials that the contractor will have to purchase for performance of this contract.

100.5 The contractor must have an active /valid registration number with the GST authorities within the State of Andhra Pradesh and shall provide copy of registration to TTD and the applicable GST shall be paid by the contractor to the department concerned. If in case not already registered shall undertake by affidavit to cause registered before Price bid

finalisation and letter of acceptance, for entering of contract agreement and for any such default not only forfeiture of EMD, but also be made liable for other civil and penal consequences.

100.6 The contractor will submit regular Invoice / Bill fulfilling all conditions of GST amended from time to time clearly indicating GST registration number, GST classification, rate and amount of GST and shall produce proof of deposit of GST in respect of preceding bills received from TTD to the TTD so as to claim the GST amount of the current bill from TTD. The contractor shall produce documental evidence that GST amount in respect of the preceding bills is remitted to the Government and reflected in GST portal.

100.7 Estimate is prepared based on SOR rates/ quotation rates for materials, labour charges, machinery hire charges etc., which are basic prices only (excluding GST). In case of open tenders where the bidders have to quote individual item rates by them, the Bidders / Tenderers shall quote rates excluding GST only, but including all other taxes.

100.8 The GST liability is as per the rates of tax applicable (if the contract is not exempted from GST concerned), as per of the G.O.Ms.No.58, Finance(WR.I), Dept., dt.08-05-2018 and other relevant GOs/ Circulars/ Clarifications/ amendments etc., being issued from time to time by the Government of Andhra Pradesh/ GOI. The contractors are requested to ascertain themselves regarding the applicability of GST and the prevailing rates thereof, while tendering and more so while making the payment of GST to the department. In this regard, TTD will not undertake any responsibility whatsoever.

100.9 The service provider / contractor is liable to pay GST which can be deducted at source under Sec.51-GST Act, 2017 on every respective bill payment made by client which includes all components as per Sec.15(2) -GST Act, 2017.

100.10 It is the responsibility of the contractor to pay the applicable GST in time and TTD will not be responsible in the regard. Any delay in payment of GST by the tenderer for whatsoever reasons, the responsibility lies on the tenderer and any penalties, interest levied in this regard shall be borne by the tenderer only and such penalties, interest will not be paid by TTD. Even, if the contractor pays any extra amount towards GST than the applicable GST, the payment from TTD will be limited to the applicable GST only. There shall not be any excess payments to the agency on account of GST and para (8) of G.O.Ms No. 58 Finance (WR.I)Dept., dt.08-05-2018 specifies that the tax liability under GST shall be taken into consideration at the time of invoicing and payment there on as per the terms and conditions of the agreement between the contractor and TTD. Department shall ensure that there shall not be any excess payments to the contractor.

100.11 The contractor shall pay the applicable GST and shall satisfy TTD w.r.t GST claims.

100.12 All the rules as per GST ACT2017 and its amendments and all Notifications / Government Orders (GOs) issued from time to time by the Govt. of India (GOI) and Govt. of Andhra Pradesh with regard to GST are applicable.

100.13 Revenue Department, Govt. of Andhra Pradesh, has issued a notification on tax deduction at source of section 51 of GST Act and the guidelines for deduction and deposits of TDS w.e.f 01-10-2018 vide GO MS No.482 Revenue (Commercial Taxes-II) Dept. date 24-09-2018. As per the present guidelines GST at 2% (CGST at 1% and SGST at 1%) for intrastate or 2% at IGST for interstate transactions will be deducted on the taxable amount payable and necessary TDS certificate will be issued. Any amendments in this regard issued from time to time will apply.

100.14 As per clause 60 of APSS, the contractor is bound to produce as required by the employer all invoices, receipts, bills, accounts, vouchers, licenses, permissions etc., compliance of labour Laws applicable if any, safety and standard certificates applicable if any and produce all the above and also any exemption from GST for GST/CGST/IGST availed by and or available to him for GST in so far as the works contract concerned with TAN & respective Registration particulars, seigniorage, NAC, Labour Cess etc., to even any component or any part of the contract works in so far as the works contract concerned.

100.15 The deposits (EMD /FSD) of the work will be released only when the contractor produces the documental evidence that GST in respect of final bill received is remitted to the Government and reflected in GST portal.

100.16 During course of contract, if the contractor claims any exemption towards GST, the same must be intimated to the Employer and to the extent GST (Works Contract) will not be paid separately.

100.17 The TTD will pay GST (Works Contract) at the applicable rates from time to time and as per the provisions of the agreement. The bidders are advised to quote their most competitive rates duly considering the input tax credit due to payment of GST on materials, machinery, services etc., for due fulfillment of the contract.

101. Supply of construction materials:

i) The contractor has to make his own arrangements for procurements, supply and use of construction materials.

ii) *All materials so procured should confirm to the relevant specifications indicated in the bidding documents.*

iii) *The contractor shall follow all regulations of the Department/Government of India in respect of import licenses etc., of the procurement of the materials is through imports and he shall be responsible for the payment of applicable duties and taxes, port clearances, inland transportation etc.*

iv) *The contractor shall make his own arrangements for adequate storage of the materials.*

102 *The tenderer should work out his percentage without reference being made to the Public Works Department current schedule of rates or to the estimate rates.*

103 *Once the contractor buys the tender schedules, he will not be permitted to return the tender schedules. He has to compulsorily submit his tender duly fulfilling all the tender conditions after buying the tender schedules. If a contractor does not tender for the work, suitable action will be initiated.*

104 *The TTD reserves the right to engage the services of the consultants during the course of the work, for Engineering or Architectural services and the contractor is bound to carry out such instructions as may be given by consultants from time to time.*

105 *Preliminary specifications of APSS shall apply to all agreements entered by the contractor with an inseparable condition of the contract. The tenderer is expected to examine closely the relevant specifications of the APSS and the special specifications of ISS before submitting the unit tender rates.*

106 *All the items of work including materials and workmanship should be executed as per relevant A.P.D.S.S. and I.S.I. code. If there are any variation between the above two specifications, the decision of the Executive Engineer is final and binding on the contract.*

107 *Scaffolding and gangways will have to be arranged by the contractor at his own whenever they are considered desirable or necessary by the Engineer-in-Charge of the work to facilitate the work.*

108 *<u>PATENT RIGHT:</u> In the event of any claim or demand being made or action being brought against the TTD for infringement of letter of patent, registration for infringement of design or trade mark in respect of any machines, plant, work materials or things or method of using or working of such machine, plant work materials or things belonging to the contractor shall indemnify the owner against all costs and expenses arising from or incurred by reason of any such claim provided that the owner shall notify the contractor immediately any claim is made and that the contractor shall be at liberty, if he so desires with the assistance of the owner if required but at the contractor's expenses, to conduct all negotiations for the settlement of same or any litigation that may arise there from and provided that no such machine, plant, works materials or things shall be used by the owner for any purpose or any manner other than that for which they have been supplied by the contractor and specified under his contract.*

109 *ASSISTANCE IN PROCUREMENT OF PROPERTIES, PERMITS, LICENCES OR OTHER FACILITIES ETC:*

The Engineer in charge of work on request by the contractor will if in his opinion the request is reasonable and is in the interest of the work and its progress assist the contractor in procurement of necessary licenses for obtaining necessary plant machinery or materials not available locally.

110 *The TTD will also assist the contractor in securing priorities for deliveries transport etc., where such are needed. The TTD will not however be responsible for the non-availability of any of the above facilities or delay in this behalf and for claims either in cost or time on account of such failures or delays and the contractor is not entitled for any claim against the owner.*

111 *In case of contradiction between the clauses included in this specification and the clauses of PS to APSS, the former will prevail over the latter and is binding on the tenderer.*

DRAWINGS

1.1 The plans enclosed with the tender are liable to the altered during execution of work as per necessity of site conditions. The premium quoted by the contractor for various items shall hold good for execution of work even with altered plans.

1.2 One set of drawings, on the basis of which actual execution of the work is to proceed shall be furnished free of cost to the contractor by the Superintending Engineer / Executive Engineer progressively according to the work program submitted by the contractor and accepted by the Superintending Engineer / Executive Engineer. Drawings for any particular activity shall be issued to the contractor at least 30 days in advance of the scheduled date of the start of the activity. However, no extra claims by the contractor toward any delay in issue of drawing or issue of any revision / change to the drawings issued earlier shall be admissible. The Superintending Engineer shall intimate the contractor 7 days in advance regarding any delay to issue of drawings, for any particular stage of works. If work gets effected due to delay to issue of drawings, for any particular stage of work the contractor shall be granted extension of time in terms of condition of the contract.

1.3 Signed drawings above shall not be deemed to be an order for work unless they entered in the agreement or schedule of drawings under proper alterations of the contractor and Executive Engineer or unless they have been sent of the contractor by the Executive Engineer with a covering letter confirming that the drawing in and authority for work in contract.

2.0 DISCREPANCIES:

2.1 In case of discrepancies between documents the following order of procedure shall apply:-

2.1.1 Between the written description of written dimensions in the drawings and the corresponding one in the specifications, the latter shall apply.

2.1.2 Figured dimensions shall supersede scaled dimensions. The drawings on a larger scale shall take precedence over those on a smaller scale.

2.1.3 Drawings issued as construction drawings from time to time shall supersede tender drawings and also the correspondence drawings previously issued.

Note: ***The contractor should not execute any component of work without obtaining the working drawings. Any work done without drawings shall be at the contractor's responsibility only. Acceptance for such work will be at the discretion of the Executive Engineer.***

1. SECRECY CLAUSE:

The drawings and specifications made available to the tenderer shall exclusively be used on the work and they are retained from passing on each plan to any unauthorised hand either in parts or in full under the provisions of Section-3 and 5 of the official secrets Act 1923. Any violation in this regard will entail suitable action under appropriate clause or official secret Act 1923.

List of Brands / Makes of Electrical Materials to be used in TTD Electrical works

Sl.No	Name of the Material	Recommended Brands / Makes
1	**PVC conduit Pipes**	Sudhakar / Finolex / Polycab / Kumar / AKG / Indiantubes / GM / Anchor / Nandi / Poly line / Goldmedal
2 (a)	**Casing & Capping (ISI)**	Sudhakar / Finolex / Polycab / Kumar / Legrand / OBO
(b)	**Trunking system**	OBO / Legrand
3	**MS Conduit& specials**	Gupta / Supreme / NAI / Bharat / GB
4	**FRLS PVC Flexible Wires**	
	Grade-A:	Finolex / RR kabel / Havells / KEI / Polycab / L&T
	Grade-B:	Goldmedal / Delton / Standard / GM / RPG / V-Guard / HPL / Anchor / Orbit
5	**Service connection wires (Aluminium WPSC/ WPTC wire)**	
	Copper wire	Polycab / Havells / Atlas / Orbit / Mardia / Goldmedal / Sudhakar / V.Guard / Star
	Aluminium Wire	Atlas / Orbit / Mardia / Goldmedal / RR Kabel / GM / Star
6	**Twin core wire/ Twin Twisted wire**	Atlas / Orbit / Mardia / Goldmedal / GM / Star
7	**Hookup wire**	Duroflex / Orbit / Mardia
8	**Ordinary Flush Type Accessories - viz. Bell Push, switches, Plug Tops, Sockets, polycarbonate, Key rings, Tags, Neon Indicator, Electronic Regulators, Dimmers, Musical Bells, Remote Bells, Telephone Jack, TV Antenna outlet, Buzzer, Ding Dong Bell, Electronic Music Bell, Jumbo Ceiling Rose, Pendent Holder, adopter.**	Anchor / Goldmedal (Olive) / GM (G Home) / Havells (Reo)
9	**Mini Modular**	Anchor / Goldmedal / Havells / ABB / Indoasian / GM / HPL
10	**Modular Switches / Cover Plates etc.**	
	Grade-A:	Legrand Arteor / Schneider Zen cello / L&T englaze / Crabtree- Murano - Amare - Ducor/ GM Four-Five / Gold Medal (GIFA)
	Grade-B:	Legrand Myrius /Crabtree Thames Platinum/ Anchor Roma / Havells Coral or Fabio / Gold medal (Curve/Air) / Schneider Livia / C&S / L&T / HPL / GM (GNINE) / Kolors / Clipsal / Indoasian

Sl.No	Name of the Material	Recommended Brands / Makes
11	**Energy Meters**	Conzerv / Elmeasure / Meco / HPL / Havells / L&T / Secure
12	**Switch Disconnector Fuse Unit (SDFU) with Sheet steel enclosure.**	
	Grade-A:	L&T / C&S / ABB / Siemens / GE / Schneider
	Grade-B:	Havells / HPL / BCH / Indo Asian / Standard / Anchor
13	**a) Change-Over switch in Sheet Steel Enclosure (OFF Load)**	
	Grade-A:	L &T / Havells / Standard / Indo Asian / C&S / Socomec
	Grade-B:	Million / Goldmedal / Star / Vimal / GM
14	**b) Change-Over switch in Sheet Steel Enclosure (ON Load)**	
	Grade-A:	L&T / Socomac / HPL / Havells / C&S
	Grade-B:	ABB / GE / Siemens / IndoAsian / Benlo / Standard / Bosma / Anchor / Goldmedal / GM
15	**Porcelain rewirable fuse units**	C&S / Standard / HPL / Anchor / Bosma / Goldmedal
16	**HRC fuse Links / DIN type fuse units.**	L&T / Siemens / Standard / Hevells / HPL / Indo Asian / C&S /Goldmedal
17	**DBs/VTPN DBS/Metal Plug & Socket Board/ Sheet Steel Metal Enclosure/ Isolators with sheet steel enclosure/ MCBs./MCCBs/ RCCBs**	-
	Grade-A:	Legrand(Ekinox 3) / Schneider-Acti9 / Hager - Novello+ / Seimens / Havells STADx / L&T-Newrang / Indoasian (Opti Pro)
	Grade-B:	ABB / Standard / Havells-euro II /C&S / L&T/ GM / Goldmedal / Hager / Indoasian
18	**Cable End Boxes**	Legrand / Siemens / Schneider / ABB / L&T / GE
19	**LT XLPE Aluminium UG cable**	-
	Grade-A:	Unistar / Havells / KEI / Polycab / RR Kabel / Finolex / Gloster
	Grade-B:	RPG / Fortune Art
20	**High mast / Street light poles of swaged / Octogonal / Garden posts**	Phillips / Bajaj / Crompton Greaves / GE / Valmont / Transrail / Aster / Laasma / Wipro / Utkarsh / Skipper
21	**HOLDERS:** **Bakelite / Porcelain / Brass**	
	Bakelite	Anchor / Record / Leader / GM / Goldmedal.
	Porcelain	Bosma / Anchor

Sl.No	Name of the Material	Recommended Brands / Makes
	Brass	Okay / Kay / Ellora
22	**L.T. PVC un-armoured flexible copper cable**	Finolex / RR kabel / Havells / KEI / Polycab / Gloster / Goldmedal / GM
23	**11 K.V H.T XLPE (E) Armoured Aluminium U.G. Cable.**	Torrent / Unistar / Havells / KEI / Polycab / Gloster / RR Kabel / RPG / Finolex.
24	**HDPE pipe.**	DURA LINE (Dura Guard) / Astral (Telerex)
25	**G.I Pipes for UG Cables.**	JINDAL / APPOLLO / TATA
28	**Flat submersible copper cable.**	Finolex / RR Kabel / Polycab / Havells / KEI / Gloster / GM / Goldmedal.
29	**Aluminium lugs(Flat).**	Dowels / Jainson / Comet .
30	**Cable Glands (Brass).**	Dowels / Comet / SMI.
31	**H.T. Cable Joint Kits (Out door / Indoor).**	Raychem / M seal / Denson / Multy / Transeal-Hongshang.
32	**L.T. Cable Joint Kits (Out door / Indoor).**	M Seal / Raychem / Denson - Multy.
33	**HT End Termination KIT (Indoor).**	Raychem / M seal / Denson / Multy / Transeal-Hongshang.
34	**Hot Dip Galvanized Metal Boxes.**	Legrand / L&T / GM/ Schneider /Anchor / Havells / ABB / Indo Asian / Siemen / Fortune Art / Goldmedal
35	**Thermo plastic cable junction boxes**	Hensel / Sadhrish / Sintex
36	**EARTHING COMPOUND**	Potential / Shake Hands / Mars / Tirumala / Ashlok earthing.
37	**INSULATION TAPE ROLLS:**	
	a) Black tape Rolls	Blue ribbon / Million / Johnson & Johnson / Goldmedal
	b) PVC tape Rolls	Steel Grip / Miracle / Anchor / Goldmedal / GM
38	**Electric water heaters**	Crompton (Solarium-BLX) / Venus (Lyra) / Racold (Eterno swift) / AO Smith HSEHDS/ Havells (Puro turbo / Warmox) / Spherehot / V-Guard
39	**Water coolers**	Voltas / Blue Star / Usha
40	**Air conditioners (Inverter and non Inverter)**	
	Grade-A:	Thoshiba / O.General / Mitsubishi
	Grade-B:	Bluestar / Hitachi / Daikin / Carrier / Voltas
41	**FANS:**	

Sl.No	Name of the Material	Recommended Brands / Makes
	Conventional ceiling fans	Crompton(Hs plus) / Havells (Velocity) / Orient (energy Star) / Halonix (Zephyn) / Usha Striker
	BLDC fans	Atomberg (Gorilla GV2) / Halonix (Plasma) /Havells(Efficiencia)/Super fan
	Wall mounting fans/ pedastal fans/ Exhaust fans	Crompton / Havells / Orient / Halonix / Almonard
42	**Lighting fixturs**	
	a) LED battern/Retrofit LED tubes/ 2'x2' panal lights	Phillips / Bajaj / Crompton Greaves / Wipro / K.Lite / Halonix / ORKUS / AKURAI / Havells / Jaguar
	b) LED Street lights	Phillips / Crompton Greaves / Wipro / K-Lite / Halonix / ORKUS / Havells
	c) LED Flood lights/ Halogen lights	Phillips / Bajaj / Crompton Greaves / Wipro / K-Lite / Halonix / ORKUS / Venture / Havells
	d) Post top lanten decorative garden light/Lumanaries	Phillips / Bajaj / Crompton Greaves / Wipro / K-Lite / Halonix / ORKUS / Havells
	e) Decorative lighting lumanaries (glass /crystal type)	Kapoor / Phillips / Havells / Wipro/ K-Lite / Bajaj
	f) Chandelairs/ Crystal lights	Kapoor / K-Lite / S&S / Crystal / Gupta (AK)
43	**Distribution Transformers**	Essennar / Crompton Greaves / IndoTech / Kirloskar / PETE
44	**Air Cuircuit breakers**	ABB / Siemens / L&T / G.E / Schneider / Legrand / C&S
45	**Vacuum circult breaker**	Siemens / L&T / Schneider / Megawin /ABB / GE / C&S
46	**HT / LT Insulators**	W.S. Insulators / Bengal / Oblum / Jayasree / Lamco
47	**Motor Starters**	Kilburn / MEX / MEI / L&T / Seimens / Schneider / BCH / ABB / Crompton Greaves.
48	**Voltage Stabilizers / Servo Stabilizers**	V.Guard / Unistab / Best Power / Servomax / Zenelec / Consule / Power One
49	**U.P.S. / Inverter**	
	1) Up to 40KVA	Legrand (Numeric) / Schneider APC / Emerson (Vertive) / Zenelac / Power One / Consule / Best Power
	2) Above 40KVA	Schneider (APC) / Emerson (Vertive) Legrand / (Numeric) / Socomec / Mitsubuhi
	3) Inverter	Exide / Amaraja / Microtech / Samhitha / Best Power
50	**BATTERIES:**	Exide / Amaron / Amco / Hi-Power / Cummins-Pulse / Tata-Green / Hitachi / Rocket

Sl.No	Name of the Material	Recommended Brands / Makes
51	**CAPACITORS**	
	a) Power Capacitors	Neptune / BCH / Dandapani / Capco / Visa Power / L&T / ABB / CG / Shreem / Epcos / Schneider
	b) Condensors for Fan / TL Fixtures	Wipro / GE / Philips / Epcos / Capco / Dandapani
52	**GENERATORS**	
	a) Portable Generators	Birla Yamaha / Honda / Kirloskar / Mahindra
	b) DG sets < 500KVA	
	i) Engine	Kirloskar / Cummins / Mahindra & Mahindra / Catterpiller
	ii) Alternator	Kirloskar / Stamford / CG / Leroy Somer.
	c) DG set ≥ 500KVA	
	i) Engine	Cummins / Catterpiller / Perkins
	ii) Alternator	Stamford / CG / Leroy Somer.
53	**Lifts / Escalators**	Kone / Johnson / Otis / Schneider / Mitsubushi/ Surya Elevators
54	**Relays for APFC and AMF Panels.**	ABB / Legrand / Electronicon / Visapower / Beluk / Trinity / Neptune / Shreem / ICD / Epcos / Ohm Power.
55	**G.I. Pipes**	JINDAL / APPOLLO / TATA

1. ***PROFORMA***

BANK GUARANTEE FOR EARNEST MONEY DEPOSIT

WHEREAS _____ (Name of the Contractor) (here in after called "the Tenderer") has submitted his tender response to NIT No _____ dated _____ for the work " _____ _____" (Name of work) (hereinafter called "the tender").

*KNOWN ALL MEN by these present that we _____ _____ (Name and Address of Bank) _____ (hereinafter called "the Bank" are bound unto _____ / (Executive Officer, TTDs, Tirupati.) in the sum of *_____ _____ _____ for which payment will and truly to be made to the said Department, the Bank binds itself, his successors and assigns by these presents.*

SEALED with the Common Seal of the Bank this _____ day of _____ 2018

THE CONDITIONS of this obligation are:-

(1) If after Tender opening the tenderer withdraws or modifies his Bid during the period of bid validity specified in the Form of Tender.

(2) If the Tenderer having been notified of the acceptance of his bid by the Department during the period of validity.

(a) fails or refuses to execute the Form of Agreement in accordance with the Instructions to Tenderers, if required; or

(b) fails or refuses to furnish the balance EMD and additional performance Security in accordance with the instructions of Tenderers.

We undertake to pay to the Department up to the above amount upon receipt of his first written demand, without the Department having to substantiate his demand, provided that in his demand the Department will note the amount claimed by him is due to him owning to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

*This Guarantee will remain in force up to and including the date** ..... after the dead line for submission of Tenders as such deadline is stated in the Instructions to Tenders or as it may be extended by the Department, notice of which extension(s) to the Bank is hereby waived. Any demand in respect of this Guarantee should reach the Bank not later than the above date.*

DATE_____ SIGNATURE OF THE BANK _____

WITNESS_____ SEAL _____

(Signature, Name and Address)

* *The Tenderer should insert the amount of the EMD in words and figures denominated in Indian Rupee. This figure should be the same as shown in the NIT.*

** *6 months for the deadline date for submission of Tender. Date should be inserted by the Department before the Tender documents are issued.*

2.PROFORMA

BANK GUARANTEE FOR TOTAL "E.M.D."

_____ (Name & address of Department)

_____

WHEREAS_____

_____

_____(name and address of Contractor) (hereinafter called "the Contractor") has undertaken, in pursuance of Contract No. _____ dated: _____ to execute the work of _____

_____ [name of work]

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a Schedule bank for the sum specified therein as balance EMD / EMD for compliance with his obligations in accordance with the Contract

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee

NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you, on behalf of the Contractor, up to a total of _____ [amount of guarantee] _____ [in words], such sum being payable and we undertake to pay you, upon your first written demand and without cavil or argument, any sum or sums within the limits of _____ [amount of guarantee] as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specified therein.

We hereby waive the necessity of your demanding the said debt from the Contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract or of the Works to be performed there under or of any of the contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall be valid upto _____ i.e., until 28 days from the date of expiry of the Defects Liability period.

Signature & seal of the Guarantor_____

Name of Bank_____

Address_____

*Date*_____

3.PROFORMA

BANK GUARANTEE FOR ADDITIONAL FURTHER SECURITY

_____*(name and address of Department)*

_____

WHEREAS _____ *(name and address of Contractor) (hereinafter called "the Contractor") has undertaken, in pursuance of Contract No.* _____ *dated:* _____ *to execute* _____ *[name of Contract and brief description of works] (hereinafter called "the Contractor");*

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a Schedule bank for the sum specified therein as Additional further security bank guarantee for compliance with his obligations in accordance with the Contract;

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee;

*NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you, on behalf of the Contractor, up to a total of Rs.*_____ *[amount of guarantee]* _____ *[in words], such sum being payable and we undertake to pay you, upon your first written demand and without cavil or argument, any sum or sums within the limits of* _____ *[amount of guarantee] as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specified therein.*

We hereby waive the necessity of your demanding the said debt from the Contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract or of the Works to be performed thereunder or of any of the contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall be valid upto and until 28 days from the date completion.

*Signature & seal of the Guarantor*_____

*Name of Bank*_____

*Address*_____

*Date*_____

4.PROFORMA

FORM OF SOLVENCY CERTIFICATES BY MANDAL REVENUE OFFICER

I, _____ Mandal Revenue Officer, of _____ do hereby certify, on being satisfied by the Examination of Revenue and other records and local enquiries that _____ _____ [here the name and address of the contractor should be mentioned] is solvent to the extent of Rs._____ [Rupees _____ _____].

Date :
Place:

MANDAL REVENUE OFFICER
SEAL OF THE OFFICE

(OR)

5.PROFORMA
FORM OF SOLVENCY CERTIFICATE BY BANKS

I, _____ Managing Director / Manager / General Manager / Agent of _____ Bank Limited do hereby certify that a _____ _____ [here the Names and addresses of the contractor] to be solvent to the extent of Rs._____ [Rupees _____ _____] as disclosed by the information and record which are available with the aforesaid bank.

For the _____ Bank

Date:
Place: Signature of Bank Manager

[Authorised to Sign]

-

BILL OF QUANTITIES

PREAMBLE

1. *The Bill of Quantities shall be read in conjunction with the instructions to Tenderers, General and Special conditions of Contract Technical Specifications and Drawings.*

2. *The quantities given in the Bill of Quantities are estimated and provisional and are given to provide common basis for tendering. The quantities here given are those upon which the lump sum tender cost of the work is based but they are subject to alterations, omissions, deductions or additions as provided for in the conditions of this contract and do not necessarily show the actual quantities of work to be done. The basis of payment will be actual quantities of work ordered and carried out as measured by the Contractor and verified by the Engineer and valued at the estimate rate plus or minus tender percentage quoted in the Bill of Quantities where applicable, and otherwise at such rates and prices as the Engineer-in-Charge may fix within the terms of Contract.*

3. *The estimate rates in the Bill of Quantities shall, except in so-far as it is otherwise provided under the Contract include cost of all constructional material, labour, machinery, transportation, erection, maintenance, profit, taxes and duties together with all general risks, liabilities and obligations set out or implied in the Contract.*

4. *The plans enclosed with the tender are liable to be altered during execution of work as per necessity of site conditions. The Tender percentage quoted by the tenderer shall hold good for execution of work even with altered plans.*

5. *The whole cost of complying with the provisions of the Contract shall be included in the estimated rates for items provided in the Bill of Quantities and where no items are provided in the Bill of Quantities, their cost shall be deemed to be distributed among the estimate rates entered for the related items of work.*

6. *General directions and descriptions of work and materials are not necessarily repeated nor summarised in the Bill of Quantities. References to the relevant sections of the Contract documentation shall be made before entering estimate rate against each item in the Bill of Quantities.*

7. *The method of measurements of completed work for payment shall be in accordance with the relevant B.I.S. Codes & A. P. S. Specifications.*

8. *All items of work are to be executed as per the drawings / specifications supplied with the contract documents.*

If there is any contradiction between the drawings and the text of the specifications, the later shall prevail.

9. *The quoted tender percentage shall also include the work of any kind necessary for the due and satisfactory construction, completion and maintenance of the works according to the drawings and these specifications and further drawings and orders that may be issued by the Engineer-in-Charge from time to time. The quoted tender percentage shall include compliance by the Contractor with all the general conditions of contract, whether specifically mentioned or not in the various clauses of these specifications, all materials, machinery, plant, equipment, tools, fuel, water, strutting, timbering, transport, offices, stores, workshop staff, labour and the provision of proper and sufficient protective works, diversions, temporary fencing and lighting. It shall also include safety of workers, first aid equipment suitable accommodation for the staff and workmen, with adequate sanitary arrangements, the payment of all wages, salaries, fees, royalties / Taxes, duties or other charges arising out of the execution of works and the regular clearance of*

rubbish, reinstatement and clearing-up of the site as may be required on completion of works safety of the public and protection of the works and adjoining land. The work of Building in quality control / assurance shall be deemed to be covered in the quoted percentage.

10. *The Contractor shall ensure that, the quoted tender percentage shall cover all stages of work such as setting out, selection of materials, selection of construction methods, selection of equipment and plant, deployment of personnel and supervisory staff, quality control testing etc. The work quality assurance shall be deemed to be covered in the tender percentage.*

a) The special attention of the tenderer is drawn to the conditions in the tender notices wherein reference has been made to the Andhra Pradesh Standard Specifications [APSS] and the Standard preliminary specifications containing therein. These preliminary specifications shall apply to the agreement to be entered into between the contractor and the Government of Andhra Pradesh and shall form an in-separable condition of the contract along with the estimate. All these documents taken together shall be deemed to form one contract and shall be complimentary to another.

b) The tenderer shall examine, closely the A.P.S.S. / MORTH and also the standard preliminary specifications contained therein and sign the Superintending Engineer's office copy of the APSS / MORTH and its addenda volume in token of such study before submitting his overall tender percentage which shall be for finished work in-situ. He shall also carefully study the drawings and additional specifications and all the documents, which form part of the agreement to be entered into by the successful tenderer. The APSS / MORTH and other documents connected with contract such as estimate plans, specifications, can be seen on all working days in the office of the Superintending Engineer –II, TTD, Tirupati.

11. *The tenderers attention is directed to requirements for materials under the clause 'materials and workmanship' in the preliminary specifications of APSS. Materials conforming to the Bureau of Indian Standards specifications, APSS etc., shall be used on the work and the tenderers shall quote his overall tender percentage accordingly.*

12. *The tenderer has to do his own testing of materials and satisfy himself that they conform to the specifications of respective I.S.I. Codes before tendering.*

13. *Inspection of site by the tenderer: Every tenderer is expected before quoting his overall tender percentage, to inspect the site of proposed work. The best class of materials to be obtained or other sources shall be used on the work. In every case the materials must comply with the relevant standard specifications. Samples of materials as called for in the standard specifications or in this tender notice, or as required by the Executive Engineer, in any case, shall be submitted for the Executive Engineer's approval before the supply to site of work is begun.*

14. *The tenderer's particular attention is drawn to the sections and clauses in the A.P. standard specification dealing with*

a) Test, inspection and rejection of defective materials and work.
b) Carriage
c) Construction plant
d) Water and lighting
e) Cleaning up during the progress and for delivery.
f) Accidents
g) Delays
h) Particulars of payments.

The contractor should closely peruse all the specification clauses, which govern the overall tender percentage he is tendering.

15. *The defect liability period of contract in terms of GO Ms.No.8, T.R&B Dept., date : 8.1.2003 is* ***twenty four (24) MONTHS***.

16. *The estimate rates for items shown in the Schedule "A" include all construction materials. No escalation in rates will be paid unless specified in the tender document. The tenderer has to quote an overall tender percentage considering all the aspects of the tender to complete the finished item of work as per the APSS / MORTH / B.I.S. specifications, the special specifications appended, Drawings etc.*

17. *If there is any contradiction between APSS / MORTH and B.I.S. specifications, listed and detailed technical specifications, the latter shall prevail.*

18. *In case of a job for which specifications are not available with the Schedule or in APSS / MORTH or B.I.S. code and are required to be prescribed, such work shall be carried out in accordance with the written instructions of the Engineer-in-charge.*

19. *The contractor should use the excavated useful soils and stone for construction purpose. Soils used for construction either for homogeneous section in hearting or in casing zone based on the suitability will be at free of cost and the cost of stone used for construction purpose will be recovered from the contractor's bill.*
The contractor should quote his tender percentage keeping in view of the above aspects.

20. *Additions and alternations by the Tenderer in the Schedule of quantities will disqualify the tender.*

21. *In the case of discrepancies between the written description of the item in the Schedule "A" and the detailed description in the specification of the same item, the latter shall be adopted.*

22. *The Unit rates noted below are those governing payment of extras or deductions for omissions according to the conditions or the contract as set-forth in the preliminary specifications of the A.P. standard specifications and other conditions of specification of this contract.*

23. *It is to be expressly understood that the measured work is to be taken according to the actual quantities when in place and finished according to the drawings or as may be ordered from time to time by the Executive Engineer and the cost calculated by measurement or weight at their respective rates without any additional charge for any necessary or contingent works connected works connected herewith. The Percentage Excess or less on ECV quoted are for works in situ and complete in every respect.*

24. *For all items of work in excess of the quantities indicated the rates payable for such excess quantities will be tendered rates i.e., estimate rates plus or minus tender percentage.*

25. *For all items of work, intermediate payment will be made provisionally as per relevant clause. Full-accepted agreement rates will be paid only after all the items of works are completed.*

26. *The contractor is bound to execute all supplemental works that are found essential incidental and inevitable during execution of main work.*

27. *The payment of rates for supplement items of work will be regulated as under.*

Supplemental items directly deductible from similar items in the original agreement.

The rates shall be derived by adding to or subtracting from the agreement rate of such similar item the cost of the difference in the quantity of materials labour between the new items and similar items in the agreement worked out with reference to the schedule of rates adopted in the sanctioned estimate with which the tenders are compared.

a) similar items but the rates of which cannot be directly deducted from the original agreement.

b) Purely new items which do not correspond to any item in the agreement.

The rate of all such items shall be estimated rates plus or minus overall tender percentage.

28. ENTRUSTMENT OF ADDITIONAL ITEMS.

a) Where ever additional items not contingent on the main work and outside the scope of original agreement are to be entrusted to the original contractor dispensing with tenders and if the value of such items exceeds the limits upto which the officer is empowered to entrust works initially to contractor without calling for tenders approval of next higher authority shall be obtained. Entrustment of all such items on nomination shall be rates not exceeding the estimate rates.

b) Entrustment of supplement items contingent on the main work will be authorised by the officers upto the monetary limits upto which they themselves are competent to accept items in the original agreement so long as the total amounts upto which they are competent to accept in an original agreement rates for such items shall be worked in accordance with the procedure prescribed in GO Ms.No.1493 PWD, dated:25.10.1971 and as amended in Govt. Memo number 544 cod 72-22 dt:6.7.1973.

c) Entrustment of either the additional supplemental items shall be further subject to the provisions under para 176(b) of APWD Code Viz., the items shall not be ordered by an officer on his own responsibility if the revised estimate or deviation statement providing for the same requires the sanction of higher authority.

Note: *It may be noted that the term estimate rate used above means the rate in the sanctioned estimate with which the tender's compared or if no such rate is available in the estimate the rate derived will be with reference to the schedule of rates adopted in the sanctioned estimate with which tenders are compared.*

NIT. No. ***42/SE(Elec.)/TTD/2026-27***

PRICE BID

Name of work :- Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala.

Estimated contract value: of ₹ **54,85,139.26**

In Words (Rupees Fifty Four Lakh Eight Five Thousand One Hundred Thirty Nine and Paise Twenty Six Only)

I, Sri / Smt./M/s. _____ do hereby express my willingness to execute the aforesaid work as per the conditions, standards, specifications, rules, regulations, etc., stipulated in the tender documents at an overall tender percentage of (in figures) _____ (in words) _____ **EXCESS / LESS** than the estimated value.

Note: - 1. The percentage quoted shall be upto a maximum of two decimals.

SIGNATURE
NAME OF THE TENDERER / AUTHORISED SIGNATORY

*NIT No. **42/SE (Elec.)/TTD/2026-27***

BILL OF QUANTITIES
PART-II (Reimbursable provisions)

Name of work : "Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala"

1) GST : As specified in clause 100

NOTE:

1) The rates mentioned in Bill of Quantities (Part-I) are including taxes if any, overhead charges and contractors profit but excluding GST.

2) As the overhead charges includes engaging technical persons by the contractor, no reimbursement for the personnel will be made separately.

3) If the contractor fails to employ technical persons, the work will be suspended or department will engage technical persons and recover the cost thereof from the contractor.

Submitted:

The draft Tender conditions document for the work of "Providing Electrical lighting to Development of landscape (Soft scape & Hardscape) works in Divya Aushadha vanam Park (3.9 Acres) at Tirumala" is put up for approval

SUPERINTENDING ENGINEER

(Elec.)

Digitally signed by
A VENKATESWARLU
Date: 23-10-2026
08:41:58